THEOLOGICAL FOUNDATION OF CLERICAL POLITICAL NEUTRALITY IN NIGERIA BASED ON CAN. 285§3 AND 287§2

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1. Introduction

Nigeria is preparing for the general election coming up few months, and this meeting presents clerical political neutrality, to indirectly call attention to the what must be done to prepare not only the clerics, but also the laity to participate actively in the elections. The topic becomes necessary knowing truly well that in the last general elections, a cleric not only participated in active politics and holds civil power, serves as an executive governor of a state. Though the Church did not hide his suspension, but his victory at the polls could tempt other clerics to follow his footstep. It becomes imperative at this point to re-emphasize the traditional teachings of the Church expressed in the Code of Canon law.

Can we talk about the clerical political neutrality without discussing the neutrality of the Church of Rome? This work strives to briefly give the meaning of cleric, the historical development and contemporary significance of the word. The Church describes the cleric as bishops, priests and deacons, both secular (Diocesan), religious (Members of religious congregations and members of societies of apostolic life)[1].

It examines the historical analysis of the word clerical political neutrality to underscore a point already made above, that is, the difficulty of discussing Clerical political neutrality without tracing it to the very life of the Church. This speaks to the stand of the Church as an institution on international politics. The decision of the Church to be neutral happened in history with attendant implications, that is the clear separation between the spiritual and temporal order.

The paper presents the clerical political neutrality in 1983 Code, exploring can.285§3 and can 287§2. The legislator imposes neutrality, which is non-partisanship and impartiality. However, neutrality cannot be understood as passivity, especially in a country like Nigeria with systemic leadership failure and corruption. The legislator provided a caveat which allows competent ecclesiastical authority to permit active participation by a Cleric, which must be done within the ambient of the provision. Does the Church usually grant this dispensation?

The paper will present the theological background of the canons under review, noting that every law has *fonte* and theological basis. The nature and mission of the church help us understand the theological perspective and foundation of the laws under review. The identity and mission of the cleric and laity reveal more clearly the motivation for clerical political neutrality. While the Church calls for clerical political neutrality, the dangers of clerical participation in politics and civil powers especially in Nigeria cannot be over emphasized.

[1] Can.266§1

The paper affirms that many clerics who have ventured into active politics and the exercise of civil power did not maintain a healthy relationship with the Church. The paper ends by presenting three models as recommendations that could be used to remedy Nigeria from the self-inflicted wounds which afflict it as a Nation. Advocacy is critical, and while it is important to intensify it, as part of the missionary impetus of the Church, it is also important to do more. While the legislator insists on making Clerics focus on sacred ministry, lay people must be encouraged to play their role in handling the temporal order. The task of the Church is to form the consciences of those who would be called to actively participate in politics and civil governance. To the extent we begin to engage laity, to that extent we are able to keep our clerics focused on their role, and in doing so, we would improve on the leadership problem that inflicts wounds on Nigerians.

2. Signification of key terminologies

2.1 Theological foundation

Theological foundation is the doctrinal, magisterial and ecclesiastical principles, which formed basis for the teaching and laws of the Church. Every law is built on moral, theological, and ethical principles. The theological principles of the 1983 Code cannot be discussed without the Second Vatican Council. It was the beliefs, doctrine, and convictions of the Council Fathers that were enshrined in the Code. These convictions are consistent with the tradition, magisterium, and scriptures. We shall, in the course of this presentation, get the *fonte* of cann. 285§3 and 287§2 under review, and in doing so get to the theology that formed the basis of the laws. The identity and mission of the clerics and laity, the nature and mission of the Church, would help in a clearer understanding of the theological foundation of clerical political neutrality.

2.2 Neutrality

The word neutrality[2] comes from the Latin word '*neuter'* meaning 'neither' (while '*ne'* means 'not' '*uter'* means 'which of the two'). The Latin word '*neutralis*' meaning 'neither of two' or 'taking neither side'. Neutrality could be said to be a condition of non-partisanship, which allows one to remain neutral between competing parties or groups. Clerical neutrality imposes on clerics impartiality and non-partisanship. As has been presented, this non-partisanship touches both the clerics and the Church as an institution.

Pope Benedict XV warns that 'neutrality could imply passivity'[3]. Thus, he preferred the word 'impartiality', which means being a father figure to all Catholics, refusing to condemn

[2] *Merriam Webster Dictionary*, 'Neutrality, Definition and Meaning' accessed on 3 June 2026.

[3] POLLARD JOHN, *The Unknown Pope: Benedict XV and the pursuit of Peace*, London: Geoffrey Chapman, 1999 pp.82-95. Also Cf. MELLONI ALBERTO, (ed.) Benedict XV: A Pope in the World of the 'Useless Slaughter' (1914-1918), Brepols Publishers, Vol.2, pp. 815-832. The Diplomatic steps that led to the absolute impartiality was presented in the work. The preference and choice of impartiality over neutrality was also highlighted.

or support either side politically. However, for the purpose of this presentation, neutrality would be seen to include both impartiality and non-partisanship, as opposed to passivity.

2.3 Cleric

A cleric[4] is an individual person who has received a sacred ordination and is thus incorporated into the clerical state.

Clergy is a body made up of clerics. It means, by implication, that clergy is in a plural context, while cleric refers to an individual member of the clergy. The words clerics and clergy are both in the plural sense but there is still a difference. While a cleric is one person who is an ordained minister; with sacred ministry, clerics refer to many of such people. We could have a cleric (one person): we could also have ten clerics (10 persons), the word clergy now refers to collective body or group of all clerics. The legislator used the word 'clerics' not 'clergy' because the law was made for an individual cleric not for the clergy as a group. For the purposes of this paper, both terms will be used and applied suitably.

3. Historical Evolution of the word Clergy

The history of the word is important to this presentation to enable us unveil the varied understanding of the term in different periods in history.

3.1 Biblical Background:

From the very beginning, the word cleric did not mean one with sacred ministry (*ministri sacri*), the way it is understood today. It reveals the fact that Levitical priests had no inheritance apart from God. The Old Testament is full of examples on this. The book of Deuteronomy reveals thus:

> *'Levitical priests, the whole tribe of Levi will be without share or heritage of their own in Israel; they will live on the foods offered to Yahweh and on his heritage'*[5].

So, in the first century, the understanding of Cleric centered around inheritance or lot.

3.2 1st Century: Kleros (Gk) (All believers as God's inheritance)

In the New Testament era, the word clergy was understood as '*kleros,'* which referred to the whole body of believers, who were seen as God's chosen inheritance. St. Paul's letter to Ephesians said that in Christ we have obtained an inheritance through the blood of Christ[6]. The idea follows that through the paschal mystery of Christ, we have been adopted

[4] Can.207§1, 1008 §1
[5] Deut.18:1ff, Num.18:21ff.
[6] Eph.1:3ff, 1 Peter 1:18-19

as sons. We no longer belong to ourselves but to God, who has ransomed us through blood of Jesus Christ.

Towards the last phases of the first century, in the time of Clement 1 of Rome (AD 88-99), there were already bishops and presbyters. There were presbyters in Corinth who were unjustly deprived of their office[7]. Levites were mentioned alongside presbyters, and they were assigned ministries of service. It also noted the presence of deacons appointed to work in the Church and laymen bound by the ordinances of laity[8]. Thus, the idea of the hierarchical order among the members of the Church could be traced. Ignatius of Antioch also mentioned three degrees of ministry: bishop, presbyter and deacons[9]. These were already present in the Church.

3.3 2nd - 3rd Centuries: Klerikos (A class set-apart (Bishop/priests)

From this point, the word clergy was understood as *'klerikos' (**κληρῐκός**)* from Greek etymology. The meaning was no longer describing a community as God's chosen people, but now a specific group distinct from others. Distinction of the *Klerikos* from the laity became distinct, without a clear description of who they are. Graziano made reference to the difficulties in having a clear meaning of the word at that time[10]. Ignatius referred to them as a class of teachers, who are necessary medium of access for the people of God[11]. *Didache* refers to the prophets as high priests of spiritual sense[12]. There was no uniform understanding of the word. Tertullian (c.155-220 AD) expressed sacerdotal claims which he called '*sacerdotium'* but at the same time stressed the Universal priesthood of all believers. He was the first to use the word *clerus* in the sense of a professional class.

In 3rd century, it was Cyprian of Carthage who made the distinction between the clergy and laity. He presented them as intermediaries between the people of God and God[13]. The letter

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[7] HEINRICH DENZINGER, Enchiridion Symbolorum definitionum et declarationum de rebus fidei et morum, 43rd edition, by Peter Hunermann, *Clement 11: Letter to Corinthians,* Ignatius, San Francisco, no. 101, p.43.

[8] There was evidence of solicitude of the Church of Rome for other Local Churches. The Letter of Clement 1 to Corinthians suggests that. However, the author did not present himself as the Bishop of Rome. It was Ireneus that used that designation in latter days. The point here is that there were presence of bishops, presbyters and deacons in the Church. K. BILMEYER AND W SCHNEEMELCHER, *Die Apostolischen Vater*, 2nd ed., 1 (Tübingen,1956), 57f; 38,66,69. Cf. J.A FISHER, *Die apostolicschen Vater*, Schriften des Urchristentums 1 (Darmstadt, 1981), 75-77,35,99,105.

[9] IGNATIUS OF ANTIOCH, Ad Trall. 3, 1. CCC 1593. 'Without the bishop, presbyter and deacons, one cannot speak of the Church'.

[10] C.XII, q.1, c.5 in *Corpus Iuris Canonici*, Editio lipsiensis secunda post Aemilius Ludouici RICHTERI curas ad librorum manu scriptorum et editionis romanae fidem recognouit et adnotatione critica instruxit Aemilius FRIEDBERG, Pars prior, *Decretum Magistri Gratiani* Lipsiae 1922, col 677.

[11] Ad Trall. c.7 '*Qui extra attare est, non mundus est'.* He who is outside the sanctuary is not clean. It was St Ignatius way of supporting an organized Church, led by the bishop and priests. He warned that one who acts without reference to them is not doing well. At the earliest time, it was difficult to distinguish roles that should be played by the Church as an organized institution because the idea of the hierarchy was not yet there, as it is today.

[12] Philip Schaff, *History of the Christian Church, Ante Nicene Christianity AD 100-325*, *Vol.2,* Christian Classic Ethereal Library Publication, 1858 p.42.

[13] *Apost. Const. II*. 34, 35, 36, 57; III.9; vi. 15,18

to bishop Fabius of Antioch[14] in 251, mentioned the presence of one bishop, forty-six priests, seven deacons, seven subdeacons, forty-two acolytes, and fifty-two exorcists, lectors and porters, five hundred widows and indigents etc in the Church.

Not minding the presence of bishops, priests and deacons in the Church, the word cleric was not yet clearly understood. In his Epistle, Cyprian helped in establishing some foundational principles about the *Clericus*: they should be totally separated from secular affairs. He made a clear demarcation between ordained hierarchy and laity(plebs)[15]. He referred to cleric as a sacrificing priest (*Sacerdotes*) and a true priest (*Sacerdos*)[16] and they must be bound by strict discipline and obedience to their bishops[17]. Cyprian helped in the transition from *Klerikos* (Greek) to *Clericus*(latin), presenting Clerics as a distinct class of ecclesiastical officers.

3.4 4th -5th Centuries: Clericus(latin) (privileged class with immunity)

The word was never well understood until the fifth century. The influence of Emperor Constantine the great, special privileges and immunity were given to the clergy, making the distinction very obvious and clear[18]. This status of the clergy was registered in the Theodosian Code[19] of 438 and thus formalized the special privileges given to the clerical class.

Clericus moved from local Church leader to a highly professionalized and legally privileged class of imperial functionaries. This widened further the divide between the cleric and laity[20]. A *clericus* became someone who has received tonsure, with moral

[14] HEINRICH DENZINGER, Enchiridion Symbolorum definitionum et declarationum de rebus fidei et morum, no.109, p.45. Cf. EUSEBIUS OF CAESAREA. *Historia ecclesiae VI*, 43,11 Ed: E. Schwartz, Eusebius Werke 2: *Kirchengeschichte* (GCHSch), 618/PL3:765/PG20:621A/Routh 3:23f.

[15] CYPRIAN, *Epistle 1*, Clergy and people of Furni

[16] CYPRIAN, *Epistle 63*, To Caecilius, on Sacrament of the Cup of the Lord

[17] CYPRIAN, *De Unitate Ecclesiae*, On Unity of the Church. 'He cannot have God for his Father who has not the Church for his mother'. "The bishop is in the Church and Church is in the bishop, and if anyone be not with the bishop, he is not in the Church". Cf. CYPRIAN, *Epistle 66*, to Florentius Pupianus.

[18] PHARR CLYDE trans. *The Theodosian Code and Novels, and the Sirmondian Constitutions*, Princeton: Princeton University Press, 1952, Book XVI, title 2. Emperor Constantine gave the *Clericus* some privileges, which some emperors after him continued. Such privileges as tax exemption and civic immunities.

[19] Emperor Theodosius II on 26 March 429 commissioned a committee to codify all the laws from the reign of Constantine. The Code span from 311 to 438. They came up with 16 books, containing more than 2,500 constitutions. These were known as Theodosian Code. It was this Code that formalized the privileges and immunity given to the Clergy by Constantine. These made a significant difference in understanding the Clergy and the distinction from the Laity was now easy.

[20] HUNTER DAVID, '*Clerical Celibacy and the professionalization of the Clergy in the Late Antiquity'*. Vigiliae Christianae, 56 n.2 (2002), pp.139-156. The gap between the *Clericus* and laity got widened more because of the moral and ethical standard imposed on the *Clericus.* The expectations regarding the celibacy and continence were some of those requirements at that time.

expectations such as clerical celibacy and rules against engaging in trade for personal gain[21].

In the synod of Elvira there were already issues discussed concerning clerical celibacy.

> *''It was decided to impose the following absolute interdiction on bishops, priests and deacons, as well as all other Clerics exercising ministry. They are to abstain from their wives and not beget children. Whoever begets children shall be removed from the Clerical state''.*[22]

It was at this time that the word *clericus* expanded to include the stratified clerical pyramid divide of the hierarchy: 'the major and minor orders'[23]. The major orders include: bishops(*episcopi*), priests(*presbyteri*), deacons (*diaconi*). The minor orders were: subdeacons, acolytes, exorcists, readers, doorkeepers etc. Both those in the minor order and major orders were considered *clericus*. They were exempted from tax payment and burdensome municipal duties expected of Roman Citizens[24].

In the last phase of the 5th century, there was a new understanding about the *clericus*. There was a link between *Kleros* (lot/inheritance) and *Clericus*[25]. *Clericus* therefore became one whose life was allotted entirely to God's service.

3.5 Middle Ages (1100-1500): Clergié (Learned)

At this time, another nuance of the word clergy was introduced. The word entered into the English language, being derived from old French '*clergié*' meaning 'learned men[26]'. The *clergié* translated to clerkship or educated, anyone who could read. With this understanding, every learned person could claim to be a cleric and could appeal to be tried

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[21] PERCIVAL HENRY (ed). *The Seven Ecumenical Councils of the Undivided Church: Their Canons and Dogmatic Decrees. Nicene and Post Nicene Fathers*, Second series, vol.14. New York: Charles Sribner's Sons, 1900. Canon 3 of the above document precisely presented the official legislations regarding Clerical conducts. Council of Elvira (c 305) gave indication on Clerical celibacy, while Council of Chalcedon (451) barred *Clericus* in engaging in secular businesses and commercial trades.

[22] HEINRICH DENZINGER, Enchiridion Symbolorum definitionum et declarationum de rebus fidei et morum, no.119. p.49.

[23] NORTON PETER, *Episcopal Elections 250-600: Hierarchy and Popular Will in Late Antiquity*, Oxford: Oxford University Press, 2007. The structural organization of Clerical pyramid presenting both the people classified as major and minor orders as *Clericus*.

[24] JONES, A.H.M, *The Later Roman Empire, 284-602: A Social, Economic and Administrative Survey*, Oxford: Blackwell 1964.

[25] JEROME, *Epistula 52* (Letter to Nepotian on the Duties of Clerics) in *Select Letters of St. Jerome*, translated by F.A Wirght, Loeb Classical Library, Cambridge, MA: Harvard University Press, 1933. Jerome traced the etymology of Clericus from Kleros, presenting Clericus as one who is divine allotment. The work frowned at accumulation of wealth by the Clerical class.

[26] PICKLES, J. D, AND SIMPSON J. A. (eds), *The Middle English Dictionary*, University of Michigan Press, 1998.The Dictionary provides the precise understanding of *Clergié* in the medieval time, especially the dual understanding of the word, as institutional Church person and an abstract quality of learning or Clerical competence of literacy.

in the ecclesiastical court as it was part of the 'privileges given to clerics'[27] by the Theodosian Code. Such a person could be given a text to read to prove his status.

So, the word *clericus* could translate at the time both as a Church worker (Church minister) in the religious perspective and as a clerk from an administrative perspective. It was so because only the Church ministers were literate[28]. This notion was sustained by the presence of an underclass of lower-ordained literate men in the later Middle Ages who could not get Church benefices, so they took over the administrative offices, worked as clerks, lawyers etc.[29] Over time, the roles were separated. Cleric became Church minister distinct from clerk, an administrative position for one who could read and write.

3.6 Reformation to Modern Era 16-20 Centuries: Ordained Ministers

Though the reformers had their own notion, especially the priesthood of all believers, distinct from the medieval notion, the difference was already clear.

Summary:

One could easily observe the trend in the development of this concept clergy. It started with understanding the '*community*' (*Kleros*) of God's people as God's inheritance, later in 2nd and 3rd century it became known as a '*function*' (*klerikos*) as people set apart (bishop/priests), in the 4th and 5th centuries as a '*Status*' (*Clericus*), a privileged class with legal immunity, and in the medieval time it meant those who were '*learned*' (*Clergié*), educated elites and ministers, while in the modern time, it became a '*profession*', for ordained leaders, distinct from the laity.

3.7 1917 Code

The Pio-Benedictine Code gives a clearer picture of who a cleric is. It says thus:

> *'By Divine Institution there are in the Church clerics distinct from Laity, although not all clerics (possess orders) are of divine institution; either of them can be religious[30].*

[27] DALTON CHARLES, *The Evolution of the Benefit of Clergy in English Common Law*. The American Journal of Legal History, Vol.52, no.2, 2012, pp.183-205. To enjoy the privileges given to the *Clergié* class one could be requested to read. It was such that secular court equated the ability to read with holding a holy office. With this ability to read one could prove his connection to the *Clergié* and claim some privileges attached.

[28] ORME NICHOLAS, *Medieval Schools: From Roman Britain to Renaissance England*, Yale University Press, 2006. It is not so difficult to understand why the word *Clergié* meant both church minister and Clerk, that is one who could read and write. It is so because, it was the Church who controlled and managed education. They were also the only educated class. Thus, being educated became synonymous with belonging to the Clerical class.

[29] KERBY-FULTON, KATHRYN, *Clerical Proletariat and the Resurgence of Medieval English Poetry*, University of Pennsylvania Press, 2021.

[30] EDWARD PETERS, *The 1917 Pio Benedictine Code of Canon Law*, English Translation, Ignatius Press San Francisco, can 107, p.60.

The 1917 Code did not clearly specify those who are clerics. Canon 108 of the Code referred to 'those who have taken into divine ministry by first tonsure as clerics'[31]. It recognized the sacred hierarchy and declared that some clerics are subordinate to others.[32] From this period the law started making more demands on those defined as clerics:[33] the separation from secular power, incardination, specified rights, privileges and obligations. All these were very well articulated and enshrined in the 1917 Code.

3.8 Vatican II

The Second Vatican Council in *Lumen Gentium* affirmed the teachings on the hierarchy in the Church, stipulating the various degrees of participation in the ministry. Three different levels were presented: bishops, priests and deacons[34]. The Church teaches that 'bishops are by divine institution the successors of the apostles, as shepherds of the Church'[35]. Thus, with episcopal consecration, the 'fullness of Orders is conferred and also fullness of power'[36]. The priests, although they do not have the fullness of priesthood, are united with their bishop in sacerdotal dignity, by the power of the sacrament of orders.[37] The priest shares the authority by which Christ builds up his Church, sanctifies and rules his Body. By the Sacrament of Orders, he receives a special character and is conformed to Christ the Priest in such a way that they can act in the person of Christ the Head[38].

The New Testament laid the foundation for what is today known as deacons. The seven men of good reputation elected, filled with the Holy Spirit and wisdom, were given the work of service[39]. St. Paul, in his letter to the Philippians, made reference to the presiding

[31] Can. 108 §§1-3
[32] *Canon Law Digest*, VI:162; VII:91; IX:51
[33] The 1917 Code did not clearly define the Cleric the way it is understood today. However, it made some progress from what used to be. It articulated the sentiments of the time and gave a direction, clearing the clouds which existed for many years. Can 111-117 centered on the incardination and excardination of the Clerics, while Cann. 118-123 specified the rights and privileges of the Cleric recognized in the Church, Cann. 124-144 stated the obligations of the Clerics in the Church. The codification and presentation of these laws helped to shape the perspective of the Clerics and the obvious distinction from the Laity.
[34] SECOND VATICAN COUNCIL, Dogmatic Constitution of the Church, *Lumen Gentium*, Vatican Press, 21 November 1964, no.21.
[35] *Ibid.* no.20
[36] *Ibid.* no.21 The fullness of power signifies; the fullness of the office of sanctifying, office of teaching, and office of governance. This is the characteristic of a high priest who enjoys fullness of sacrament of Orders. However, this power cannot be exercise in isolation. It is exercised in hierarchical communion with the head and members of the college. Also Cf. CCC no.1557
[37] *Lumen Gentium*, no.28.
[38] SECOND VATICAN COUNCIL, Decree on Ministry and Life of Priests*, Presbyterorum Ordinis,* 7 December 1965, no.2; SECOND VATICAN COUNCIL, Constitution on Sacred Liturgy, *Sacrosanctum Concilium*, Dec. 4, 1963, no.35, 2 AAS 56(1964), p.109.
[39] Act 6:1-6

elders and deacons[40]. The same St. Paul described the quality of life expected from a deacon[41].

Vatican II gave diaconate a proper and permanent position in the hierarchy of the Church. *Lumen Gentium* states; ''At the lower level of the hierarchy are deacons, upon whom hands are imposed, not unto priesthood, but unto a ministry of service''.[42] The deacons should in communion with the bishops and priests serve in the liturgy of the word and charity[43]. Later in history, the permanent and transient deacons were defined, actualizing the yearning of the Council Fathers expressed in *Lumen Gentium*, *Ad gentes* and other relevant Conciliar documents. Paul VI later effected the actualization through general regulation for permanent deacon in the latin Church[44]. Deacons share in Christ's mission and grace in a special way. 'The sacrament of Holy Orders marks them with an imprint or character which cannot be removed and which configures them to Christ' who came not to be served but to serve and to give his life as a ransom for many[45].

The Church recognizes different degree of exercise of ecclesiastical ministry; the bishop, priests and deacons. There are two degrees of ministerial participation in the priesthood of Christ: the episcopacy and presbyterate. The Diaconate is intended to help them. It is for this reason that the word *Sacerdos* is limited to only bishops and priests, excluding of course, deacons[46].

3.9 *1983 Code on Cleric:*

The extant Code in can. 207 made a careful distinction between the laity and clergy, referring to the later as sacred ministers in the Church[47]. The Code specifies that one becomes a cleric by the reception of diaconate ordination. He is then incardinated in the

[40] Phil.1:1ff

[41] 1 Tim. 3:8ff Deacons must be examined and admitted to serve only if there is nothing against them. Deacons must be husband of one wife and must be people who manage their children and households well. He talked about earning of deacons and so on. It is clear the understanding and usage of the word is clearer and more appropriately applied.

[42] *Lumen Gentium* no.29, *Ad gentes* no.16. These documents affirmed the importance of deacons in the Church looking at their functions. It proposed and affirmed that Diaconate be restored to proper and permanent rank in the hierarchy and could be given both to the married and unmarried (permanent and transient perspective). With this, the council made a case for permanent Deacon in the Latin Church. Cf. also. CCC no. 1571

[43] *Ibid.* no.29 The duties of deacons were given: administer baptism, dispenser of Eucharist, assisting in marriage, bringing viaticum to the dying, reading the gospel to the faithful, instructing the people, officiating at funerals, and administering the sacramentals etc.

[44] PAUL VI, Motu proprio datae. Generales normae de diaconatu permanenti in Ecclesia Latina restituendo feruntur, *Sacrum Diaconatus Ordinem*, (18 iunii 1967), in AAS 59(1967), pp.697-704. The documents provided general regulation for the restoration of permanent Deacons in the Latin Church. Later the same Pontiff gave another document *Ad pascendum* which stated the condition for the admission of the candidates to diaconate in general.

[45] CCC no. 1570, Mt. 20:28

[46] CCC no. 1554

[47] Can. 207

particular Church, personal prelature or religious institute in order to avoid *Clerici acephali*[48].

A cleric is an individual person who has received a sacred ordination and is thus incorporated into the clerical state. Canon 207§1 states:

> *''By divine institution, among Christ's faithful there are in the Church sacred ministers, who in law are also called Clerics, the others are called lay people''*[49].

Lumen Gentium n.32	Can.207§1 (1983 Code)
By Divine institution Holy Church is ordered and governed with a wonderful diversity… sacred ministers and rest of the people of God.	''By divine institution, among Christ's faithful there are in the Church sacred ministers, who in law are also called Clerics, the others are called lay people

Looking above, *Lumen Gentium* no. 32 seems to be *la fonte* of Can.207§1. The Code used terminology such as sacred ministers to refer to the juridical term clerics: 'bishops, priests and deacons'[50]. Canon 1008 notes that some among the Christ's faithfuls who have the sacrament of orders and marked by indelible character, are constituted sacred ministers, each acting in his own way, to fulfil in the person of Christ the head, the offices of teaching, sanctifying and ruling[51].

The presence of sacred ministers in the Church is by Divine institution. It is so because the sacred ministers essentially belong to the hierarchy of the Church. This hierarchy as we know does not command inequality, as each should work for the good and growth of the body of Christ. It is significant that the new Code talked first about *Christifideles* which stems from baptism before introducing the hierarchy (cann. 204, 205, 206). It was only in can. 207 that distinction was made between the *Christifideles and ministri sacri*. The *sacred ministers* are selected from *Christifideles*. The legislator in can.208 immediately called attention to equality of dignity and action between all *Christifideles*. This is so because each contribute according to one's condition and office in the growth of the body of Christ[52]. A person becomes a cleric through reception of diaconate ordination. When one is validly ordained, he enjoys the legal condition, described by can.290 as 'clerical

[48] Can. 266§1
[49] Can. 207§1
[50] CCC 1593 Sacred Ministers are three degrees: bishop, presbyters and deacons. These ministries are conferred by sacred ordination and they are irreplaceable for the organic structure of the Church. Each play a specific role, yet collaborating with the other for the smooth functioning of the Church of God.
[51] Can.1008
[52] Can.208

state'[53]. A person who is in the clerical state enjoys the rights and obligations proper to the state. These are lost when a cleric loses the clerical state[54]. Being in clerical state comes with expectation of political neutrality. Has the Church always maintained this stand or did it begin at some point in history?

4. Historical Analysis of Clerical Political Neutrality

The history of clerical political neutrality in the Catholic Church spans from years back, beginning from the Church's direct participation in temporal order to a diplomatic stance, which is a neutral position. This presents the Church as a neutral figure, an impartial and independent entity, able to command moral authority, both during conflicts and wars.

4.1 **Pre-19th Century Period**

Before the 19th century the Church represented by her ministers, were directly involved in managing the temporal order and politics. The idea of clerical political neutrality was not there. The pope governed large part of the central Italy and had armies like a monarch. He participated in alliance building (with Franks and France) and wars to protect his territories. During the 14th Century Avignon Papacy and Western Schism, the pope resided in Avignon France, and many claimed the papacy was backed by many European nations[55].

During the Renaissance (15-16 Centuries), the pope played politics in favour of papal states and territories and it was followed by the formation of Swiss guards (1506), a military force[56]. Pope Julius II (Warrior pope) personally led his military to war, and signed many treaties to expand papal territory[57].

During the counter Protestant reformation (16-17 centuries), the pope aligned with catholic monarchs in order to remain relevant in politics of Europe. It was indeed a time where the pope was fully involved in political affair of Europe like other political leaders[58]. The Church was also seen in that light.

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[53] Can.290 There are condition listed by the legislator that makes one to lose the Clerical state: i. by the judgement of a court or an administrative decree, declaring the ordination invalid. ii. By the penalty of dismissal lawfully imposed. iii. By a rescript of the Apostolic See; this rescripts, however, is granted by the Apostolic See to deacons for only grave reasons and to priests for only the gravest of reasons.

[54] Can. 292 The obligations and rights proper to the Clerical state are carefully listed by the legislator in cans. 273-289. In fact, the topic of discussion falls under the obligations proper to the Clerical state. Clerics are people set apart and thus should comport themselves in a way becoming of their status in the Church.

[55] ROLLO-KOSTER, JOELLE, *Avignon and Its Papacy, 1309-1417: Popes, Institutions, and Society*, Lanham: Rowman & Littlefield, 2015 p.100ff.

[56] OAKLEY FRANCIS, *''The Avignon Papacy and the Great Western Schism''. In the Cambridge History of the Papacy*, edited by Miles Pattenden. Cambridge: Cambridge University Press, 2025, pp. 245-278.

[57] SHAW CHRISTINE, *Julius II, The Warrior Pope*, Oxford: Blackwell Publishers, 1993, pp.110-368. The Pope led military operations. He also signed treaty negotiations, and established the Swiss Guards. During his time as the pope, the boundaries of Papal States were expanded.

[58] WHALEY JOACHIM, *The Counter Reformation and Empire, ''In Germany and the Holy Roman Empire*: Volume 1: Maximilian 1 to the Peace of Westphalia, 1493-1648, Oxford: Oxford University Press, 2012 pp. 331-385.

4.2 19th Century Period

A principal shift in ideology happened in 19th Century, occasioned by the loss of the papal states, which happened on 20 September 1870. The Papal states were under the protection of the French military. However, during the Franco-Prussian War, the French military were withdrawn making Pope Pius IX vulnerable, leading to the capture of Rome; through *porta pia,* completing the famous Italian unification. The pope declared himself prisoner of Vatican giving rise to the 'Roman question'[59]. Rome was captured.

The capture of Rome was a new beginning and definition for the Church. The loss of temporal power assisted the Church to redefine her diplomatic identity[60]. During the Neapolitan crisis (1820-1821) the Pope Pius VII maintained a neutral stand, refusing to take side with either the liberal revolutionaries or the conservative absolute monarchs. The pope adopted deliberate neutrality as a strategy to escape the crisis, which would have consumed the Church.

In the World War 1,[61] the Pope Benedict XV (1914-1922) refused to take side. He maintained neutrality, justifying his decision, on the premise that Catholics were fighting from both sides.

4.3 20th Century Period

It was during this time that political neutrality became clearer, especially in the famous Lateran accord (11 Feb 1929). This treaty ended the 60-year Roman Question. It turned the papacy from a landless empire to a newly created Vatican City State. It was this accord that made Vatican a sovereign state in international law, giving it the powers to act as a ***neutral diplomat*** in international disputes. The pact was signed by Prime Minister Benito Mussolini (representing king Victor Emmanuel III) and Cardinal Pietro Gasparri (representing Pope Pius XI)[62]. Ever since then, the popes through the organs of the Church

[59] CHADWICK OWEN, A History of the Popes, 1830-1914, Oxford: Clarendon Press, 1988 pp.218-226. French Military garrison was withdrawn from Rome, making the Pope vulnerable. The Pope declared himself 'prisoner of Vatican' establishing the famous Roman question.

[60] KERTZER DAVID, *Prisoner of the Vatican: The Popes, the Kings, and the Garibaldians' Failed Plot to free Italy from the Pope*, Boston: Houghton Mifflin, 2004, pp. 43-57.

[61] POLLARD JOHN, The Papacy in the Age of Totalitarianism, 1914-1858, Oxford: Oxford University Press, 2014 pp.68-86. During the World War 1, Pope Benedict XV who was elected few weeks before the war, refused to take side. He maintained neutrality. He argued that Catholics fought on both sides (Allied & Central). This decision remains very symbolic in the history of the Church. Cf. ALVAREZ DAVID, The Pope's Soldiers: A military History of the Modern Vatican, Lawrence: University Press of Kansas, 2011 pp. 245-251. The complete dissolution of the Vatican's military powers made Pope Benedict XV to divert to humanitarian diplomacy and moral authority, as only option for survival during the great World War 1.

[62] KERTZER DAVID, *The Pope and Mussolini: The Secret History of Pius XI and the Rise of Fascism in Europe,* Random House, 2014 pp.102-114.

have maintained a neutral stand, in the international politics[63]. It is pertinent at this point to highlight six achievements recorded in the 'Lateran treaty': [64]

i. Pope's independence from any secular government
ii. Perpetual neutrality of the pope in international conflicts[65]
iii. Compensation of the Church over loss of papal states in 1870 (1.75 billion lire), which provided financial foundation for Vatican City State.
iv. Recognition of the Catholic Church as sole state religion
v. The Church was granted control over marriage laws and religious education in public schools.
vi. The Papal status recognized as both the head of the Church and head of Vatican City State.

During the World War II, Pope Pius XII (1939-1958)[66], maintained Church's neutrality, avoiding attacks on Vatican City State. With this he created opportunity that did not exist before. The opportunity of housing and taking care of the sick and wounded; while the War lasted. The creation of Vatican state frees the pope (Holy See) from any political control. Holy See, a sovereign juridical entity, maintains diplomatic relationship with many countries and is also a permanent observer at the United Nations. It is important to note that in the Lateran treaty, the Church took a stand of neutrality in international politics. In the last United Nation General Assembly (September 2026) the Secretary of State, Cardinal Pietro Parolin addressing the assembly focused on defense of the dignity of the human person and the challenges occasioned by artificial intelligence and so on. He ended by calling attention to the importance of peace, whose absence has given rise to the humanitarian needs of the world. In all he maintained the Church's political neutrality. It is the Church's political neutrality that gave rise to clerical political neutrality.

4.4 1984 Villa Madama Accord[67]

In the villa Madama accord, many things were changed in the Lateran Treaty. Important among those were making religious education voluntary in public schools and making Italy

[63] MARAINI GIULIANO, *The Legal Status of the Vatican City State Under International Law*, American Journal of International Law, Vol. 24, no.2, 1930 pp.301-312.
[64] Ibid. pp. 115-123 The treaty came with compensation of 1.75 billion lire given to the Church. The treaty also give Church the control of school curriculum and marriage laws pp.140-146.
[65] BLET PIERRE, *Pius XII and Second World War: According to the Archives of the Vatican*, Paulist Press, 1999 pp.64-79. The signing of the treaty imposed on the Church perpetual neutrality on international politics.
[66] PHAYER MICHAEL, *The Catholic Church and the Holocaust, 1930-1965*, Indiana University Press, 2000 pp. 41-52.
[67] FERRARI SILVIO, *Church and State in Italy, Church and State in Western Europe*, (ed.) Robbers Gerhard, State Church Systems in the European Union, 2005 pp. 209-224. The era of sole state religion and monopoly in Curriculum ended. Italy was realigned with the constitutional principle of a secular state. It is a landmark accord that changed the dynamics of the Church in Italy. Cf. MARGIOTTA BROGLIO FRANCESCO, *The 1984 Agreement Between Italy and Holy See, A New Era of State Church Relations*, European Journal of Law and Religion, vol.3 no.1, 1988 pp.45-58. The Accord was called the 'pact of freedom and cooperation'. It was signed by Prime Minister Bettino Craxi and Cardinal Agostino Casaroli.

a secular State (Catholic Church was no longer a sole state religion)[68]. Most importantly, was the end of the financial support from the Italian state for the clergy. It moved from direct state salaries of the clergy to voluntary '*otto per mille'* (0.8percent) that is, voluntary income tax to the Catholic Church[69]. This is applicable only to those who want to support the missionary action of the Church. It goes for the maintenance of clerics and for other missionary work of the Church.

4.5 Second Vatican Council (1962-1965)

The Second Vatican Council has maintained neutrality both for the Church and her clergy. This clerical neutrality surfaced in the 1917 Code and was modified in the 1983 Code.

The Second Vatican Council affirmed that the Church has a role in the temporal order. However, it shifted the direct involvement in direct politics to the lay people. The Council fathers affirmed in *Gaudium et Spes*, that the Church does not 'identify with any political community or party nor it is bound to any political system'[70]. It is this freedom that aid neutrality of the Church. It is important at this point to emphasize that it is the Church's neutrality that gives impetus to clerical neutrality.

The people of God are citizens of two cities[71]. The Council Fathers opined that secular duties and activities belong to the lay people to accomplish[72]. The Clerics have the task of forming the conscience of the lay people. They have to make them understand their mission and ensure they take up the responsibility of engaging the temporal order and transforming it from within. *Gaudium et Spes* no.43 states:

> *''Since they have an active role to play in the whole life of the Church, laymen are not only bound to penetrate the world with a Christian spirit, but are also called to be witnesses to Christ in all things in the midst of human society''*[73].

[68] VENTURA MARCO, *Religion and Law in Italy*, Wolters Kluwer, 2013 pp.132-145. The work presents the change of the 1929 treaty that concerns education. Religious education was made voluntary in public schools, dependent on the choice of students and their parents.
[69] CECCANTI STEFANO, *Financing the Churches in Italy: The Evolution of the Otto per Mille System*. '' Journal of Church and State, vol.48, no.3, 2006 pp.591-608. The transition from the *congrua* system where the State funded the Church directly to the 0.8 percent voluntary income tax system. The money is also meant to be used only for maintenance of priests and missionary work. Cf. also ZUANAZZI ILARIA, *The Economic Regime of the Catholic Church in Italy After the 1984 Concordat Revision*, Ecclesiastical Law Journal, vol.12, no.2, 2000 pp.184-197.
[70] SECOND VATICAN COUNCIL, Pastoral Constitution in the Modern World, *Gaudium et Spes*, 7 December 1965, no.76.
[71] *Ibid.,* no.43.
[72] *Ibid.*
[73] *Ibid.*

The apostolate of the laity lies in improving the temporal order. It is to penetrate and perfect the temporal order with the spirit of the gospel[74]. This mission of the laity becomes more important and urgent in our country, where there are: lack of faith, neo-paganism, corruption, problem of leadership etc. In all these, the lay people are called to use their gifts, intelligence, and resources to respond to these challenges applying the appropriate Christian principles[75].

Clerics should avoid the temptation of thinking that they must be involved in everything. This point was well articulated in the conciliar document:

> *''Let the layman not imagine that his pastors are always such experts, that for every problem which arises, however complicated, they can readily give him a concrete solution, or even that such is their mission. Rather, enlightened by Christian wisdom and giving close attention to the teaching authority of the Church, let the layman take on his own distinctive role''*[76].

The temptation of getting into the distinctive role of laity must be avoided. Clerics must focus on those things; that they alone can do. Clerics and laity have distinct role in the Church.

5. Clerical Political Neutrality in the 1983 Code

5.1 Can 285 §§1- 4 in 1983 Code

Canon 285§3 cannot be handled in isolation. To fully understand the position of this canon under review, one needs to necessarily understand all its paragraphs.

a. Law preventing a Cleric from doing anything unbecoming of his status:

Can 285 §1

1983 Code can.285§1	1917 Code can. 138
Clerics are to shun completely everything that is unbecoming of their state, in accordance with particular law.[77]	*Clerics shall entirely abstain from all those things that are indecent to their state; they shall not engage in indecorous arts…..*

Canon 138 of the 1917 Code which stated the same principle went further to present a list of acts or places that clerics should abstain from. Some mentioned include:

i. Unfitting trade
ii. Professions such as jailers

[74] SECOND VATICAN COUNCIL, Decree on the Apostolate of the Laity, *Apostolicam Actuositatem,* 18 November 1965, no.5
[75] *Apostolicam Actuositatem,* no.6.
[76] *Gaudium et Spes*, no.43.
[77] Can 285§1

iii. Taxi cab drivers
iv. Gambling
v. Carrying weapons etc.

Canon 140 of 1917 Code did not reflect in the 1983 Code. However, it listed few other things which clerics should pay attention to. The legislator here cautioned against the danger of scandal and warned that clerics should avoid places and events that could cause scandal. These places where listed:

i. spectacles
ii. dances
iii. shows

The 1983 Code taking note of the differences in cultures and places, mandates the particular law to provide the details[78]. The present Code as stated before limits priests from participating in anything that is unbecoming of their state as priests. It stated only a general principle, leaving specifications to the particular law.

b. Law preventing a Cleric from doing anything foreign to his status:

Can 285§2:

1983 Code can.285§2	1917 Code can. 139§1
Clerics are to avoid whatever is foreign to their state, even when it is not unseemly[79].	They should avoid those things that while not indecent, are still alien to the clerical state.

Consistent with can.285§1, the new Code in can 285§2 presented a general legislation without presenting a list of things foreign to clerical state. This was also the case in the similar canonical provision in the 1917 Code being referred to. However, can. 139&2 of 1917 Code stated specifically those things that though not indecent are alien to clerical state. It listed the following:

i. Exercise of medicine or surgery
ii. Acting as public functionaries and notary
iii. Assuming public offices which encompass exercise of lay jurisdiction

The canon however provides escape route. With indult one could exercise medicine or surgery. It is important to note that the exact law, 1983 Code in can.285§2 provided a general principle, without giving details, mandating particular law to provide specification.

[78] John Beal et al, *New Commentary on the Code of Canon Law* (ed), Bangalore, Theological Publication in India, 2003 p.374.
[79] Can. 285§2

c. *Law preventing Clerics from administering goods or holding secular offices that involves rendering account:*

Code 285§4:

1983 Code 285§4	1917 Code 139§3
Without permission of their Ordinary, they may not undertake the administration of goods belonging to lay people, or secular office which involve the obligation to render account. They are forbidden to act as a surety, even with their own goods, without consulting their proper Ordinary. They are not to sign promissory notes which involve the payment of money but do not state the reasons for the payment.	With the permission of their Ordinary, they shall not go into the conduct of goods belonging to lay persons or into secular offices requiring the duty of rendering accounts, they shall not act in the role of procurator or advocate except in ecclesiastical tribunal or in civil(cases) that involve their goods or the goods of their church, in lay criminal trial threatening grave personal penalties (to the defendant), they shall take no part, not by offering testimony without necessity.

Both canons are almost the same. 139§3 of 1917 Code also listed other things that are alien to the clerical state namely:

i. Conducting of goods belonging to lay people
ii. Holding secular offices requiring the duty of rendering account
iii. Serving as procurator or advocate in the tribunal (this is with lots of exceptions)

In can 285&4, the legislator in providing the competent authority that could grant the exception provided made reference to the Ordinary. As we know in this context, the Ordinary in law is described by the combination of canons 134&1 and 368.

> *''Ordinary means apart from the Roman Pontiff, Diocesan Bishops and all who, even for a time only are set over a particular Church or a community equivalent to it (territorial prelature, a territorial abbacy, a vicariate apostolic. A prefecture apostolic and a permanently established apostolic administration), and those who have general ordinary executive power, that is, Vicar general and episcopal vicars, major superiors of Clerical religious institutes of pontifical right and Clerical societies of apostolic life of pontifical right, who have at least ordinary executive power'.*[80]

[80] Can.134 &1, Can. 368. When the word local is added to ordinary, the meaning also changes. The Local Ordinary includes all those mentioned in can 134&1, with the exception of superiors of religious institutes and of societies of apostolic life. Apart from the two listed above, the rest are also local ordinaries, because they have territories they administer. The word Ordinario del luogo brings out the meaning better. They possess ordinary jurisdiction over a territory. So, the jurisdiction is territorial and stable and flows directly from their office. Can 134 &2.

However, for members of lay institutes of pontifical right, the permission mentioned here can be granted by proper major superior[81].

Can. 139§3 of 1917 Code is almost the same in can. 285 §4 of 1983 Code. The 1983 Code went a step further in can. 1042 no.2 to impede those affected by this provision from receiving orders. Non cleric who exercises an office or administration forbidden for clerics in accordance with cann. 285 and 286, of which the ordinand must render account is impeded from receiving orders until such a time the account is renders and the candidate is cleared or freed from the office[82]. The impediment attached to this provision of the law is to stress the importance.

d. Laws prohibiting Clerics from Business:

Can. 286:

1983 CIC 286	**1917 can 142**
Clerics are forbidden to practice commerce or trade, either personally or through another, for their own or another's benefit, except with the permission of the lawful ecclesiastical authority.	Clerics are prohibited from exercising, either for themselves or for the advantage of another, business or trades, either in their own name or by using the name of another[83].

Here both Pio-Benedictine and extant law used the word prohibition to demonstrate the seriousness of the law. However, only the 1983 Code created a caveat, noting that such businesses could be done with the permission of competent ecclesiastical authority, without mentioning anybody specifically. The 1983 Code created a possibility of engaging in commerce only with permission of the lawful ecclesiastical authority. This is an improvement from the 1917 Code.

Both the 1983 Code and the 1917 Code went further to protect the legislation with penalties. can. 2380 of 1917 Code provides that 'clerics or religious who carry out trade or business themselves or through others are to be coerced by the Ordinary with penalties appropriate to the gravity of the fault'[84]. This is also repeated in the 1983 Code in can. 1392, using almost the exact words of can 2380 of 1917 Code, without specifically mentioning whose duty it is to punish.

As already said above, 1983 Code in can 1042§ 2 lists the provision of this can. 286 as impediment to sacrament of Holy Orders. The impediment subsists until such a time, the

[81] Can. 672
[82] Can.1042 n.2
[83] *Canon Law Digest*, III:68-69; VI:169
[84] *Ibid.* III: 670.

person has relinquished the office and administration, and rendered the account[85]. This is to demonstrate the seriousness of the legislator in freeing Clerics from every entanglement, and providing the necessary support for the sacred mission to which they are called.

Conclusion on Can. 285§§ 1,2,4 and Can 286

From what has been presented above, can. 285§§ 1,2,4 and can. 286, were seen in the 1917 Code. The motivation of the law is to create a clear difference between the temporal and supernatural sphere. Issues that boarder on economy, commerce, politics, governance and power attached to temporal authority; are not fit for clerical state.

Secondly the legislator was intentional about directing clerics to the main focus of their identity and mission. The laws were also formulated to free clerics from the distractions from the temporal order; so that they could focus on their mission, which is urgent.

However, the Church does not want to leave the temporal order unattended. Thus, the motivation of the law is also to bring out clearly the apostolate of the Laity. They should take full control of the temporal order, while the clerics should occupy the supernatural order, each collaborating with the other for greater effectiveness.

e. Law preventing a Cleric from exercising civil power

Can 285 §3:

1917 Code Can 139 §2	**1983 Code Can 285 §3**	***Gaudium et Spes***
‘‘They shall not exercise… without indult; … they should not assume public offices that encompass the exercise of lay jurisdiction or administration’’.	*‘‘Clerics are forbidden to assume public office whenever it means sharing in the exercise of civil power’’* ***Latin*** *(Officia publica, quae participationem in exercitio civilis potestatis secumferunt, Clerici assumere vetantur)*	No.43: *Let the laity take their distinctive role...* No. 76: *The Church is not tied to any particular form of human culture, or political, economic, social system…*

[85] Can.1042§2

Conclusion:

The combination of both nos. 43 and 76 of *Gaudium et Spes* speaks volumes. While no.43 charges the laity to play their distinctive role of participation in the temporal order, no. 76 frees the Church and by implication clerics from any type of ties with political order, giving the Church and clerics the type of freedom necessary for evangelical mission on earth. Thus, *Gaudium et Spes* specifically re-emphasized that the temporal and civil governance is primarily the proper domain of the lay faithful. It is this that gave rise to the canonical prohibition found in can.285 §3.

It is an emphasis on the distinction between the role of the Church and that of the State[86]. The mission of the Church focuses on eschatology and hope that it offers. Clerics are called to desist from such life that could distract them from the mission of wining souls for God.

5.2 Can 287 as newly introduced canon in 1983 Code

Canon 287 is completely new. It was not contained in the 1917 Code. There was a deliberate attempt to add to the restrictions seen already in 1917 Code and this time it was clearly stated.

1983 CIC 287 §2	Latin Version 287§2	*Presbyterorum ordinis,* 6
''They are not to play an active role in political parties or in directing trade unions unless in the judgement of the competent ecclesiastical authority, this is required for the defense of the rights of the Church or to promote the common good''.[87]	*''In factionibus politicis atque in regendis consociationibus syndicalibus activam partem ne habeant,* ***nisi iudicio competentis auctoritatis ecclesiasticae****, Ecclesiae iura tuenda aut bonum commune promovendum id requirant''.*	*''In exstruenda vero christianorum communitate,* ***Presbyteri numquam alicui ideologiae vel factioni humanae inserviunt****, sed, ut Evangelii Praecones et Ecclesiae Pastores, ad Corporis Christi spirituale incrementum consequendum operam impendunt''.*[88]

[86] C.J ERRAZURIZ M, *Corso fondamentale*, p.255. There could be confusion and conflict of interests if a priest participates in civil power. The struggle and politics that go with it could distract the heart of a priest from the very special eschatological duties which is fundamental to the vocation of a priest.

[87] Can.287 The exact law presents first of all the motivation for the can 287 &2, in the first paragraph. It is owing to the responsibility placed on the shoulders of Clerics for all humanity, which calls for the second paragraph. If the role of the Clerics is for all, how will the work be done if they become partisan in their politics? This will definitely affect their roles in a negative manner.

[88] SECOND VATICAN COUNCIL, Ministry and Life of Priests, *Presbyterorum Ordinis,* 7 December 1965 no.6 ''In building the Christian community, priests are never to put themselves at the service of some human faction or ideology, but, as heralds of the Gospel and shepherds of the Church, they are to spend themselves for the spiritual growth of the Body of Christ''.

Conclusion on Can. 287§2

The *fonte* of the law shows clearly the reason for the law. The Second Vatican Council, paid attention to the formation of clerics. This is at the heart of the renewal of the Church witnessed in the Second Vatican Council[89]. Now the Council fathers provided a general recommendation setting clerics apart from others as those who will serve all. *'Presbyteri numquam alicui ideologiae vel factioni humanae inserviunt'*[90]. Priests and by extension all clerics should never serve some ideologies or human faction but should serve all. This canon therefore seeks to protect the fundamental mission of clerics, which is representing Christ, who came to save the entire humanity. Party politics and trade union leadership would make a cleric defend and protect interest of a part and not that of a whole. In doing so, the cleric could divide the flock instead of uniting them[91].

It is important to note that this is not a call to abandon everything politics. The law recognizes that man is a political being and should take interest in what happens in the society. It is important to take this opportunity to re-echo the need to encourage the lay faithful to participate actively in partisan politics. Clerics and lay faithful are expected to vote and also ensure that their vote counts.

To what extent are Clerics allowed to participate? The law says '*activam partem ne habeant'*. What is this active participation? It is safer to say whatever is not active participation in politics is allowed. Clerics are umpires and not active participants.

Analysis of the Law

In the canon under review can 287§2, two things stand out namely: The action of competent ecclesiastical authority and the conditions attached for evaluation by the ecclesiastical authority. We shall take them individually to be able to offer the sufficient elaboration that each truly deserves.

i. Action of the Competent Ecclesiastical Authority

Who can grant the dispensation?

Latin	**Italian**
'…nisi iudicio competentis auctoritatis ecclesiasticae…'	*'…a meno che, a guidizio dell' autorità ecclesiastica competente…'*

[89] *Presbyterorum Ordinis,* no.1.
[90] *Ibid.,* no.6.
[91] Giacomo Incitti, *Il Sacramento dell'ordine nel Codice di Diritto Canonico, il Ministero dalla formazione all'Esercizio,* Urbaniana University Press, 2013 p.146.

	English: *'…Unless in the judgement of competent ecclesiastical authority'..*

To the best of my knowledge the legislator did not directly provide the competent authority in this case. However, in the can.287&2 of 1983 Code under review the Code did not provide specifically the competent authority to refer to in this case. How do we get to the authority being talked about here*?* At this point we know that ''ecclesiastical laws are understood according to the proper meaning of the words considered in their text and context. If the meaning remains doubtful or obscure, there must be recourse to parallel places, if there is any, to the purpose and circumstances of the law, and to the mind of the legislator''.[92] In this case, is it possible to get the competent authority being described here?

Drafting of can 287&2

Let us look at the works of the commission that drafted can. 287. There we could get a path leading to the answer. The 1971 synod of bishops demanded that the priest who wants to play active role in political parties needed the consent of the bishop after the consultation with priest council, and if need be, the Episcopal Conference[93].

As usual this canon went through several stages until it finally came out as Can.287. The 1977 draft[94] of the canon (148 &2) and in the 1980 draft (c.262&2) are very revealing. In these drafts permission of the Holy See was required for bishops to play active role in politics. Same is required in places where a pontifical ban was in effect. However, in other places and in the case of priests and deacons, both their own Ordinary and the Ordinary of the area where the activity was to occur had to approve it. It is reasonable and clear to interpret 'competent ecclesiastical authority' in term of these provisions[95]. So, in the sense being considered, the competent ecclesiastical authority could be said to be the proper ordinary, and ordinary of the place where the political activity will take place.

[92] Can. 17
[93] *The Ministerial Priesthood*, pt II, 2 *CLD* 7, 357.
[94] JOHN P. BEAL, JAMES A. CORIDEN, THOMAS J. GREEN, *New Commentary on the Code of Canon Law,* Theological Publication, India Bangalore, 2003 p.380. It might be important to subtly clarify that can 287&2 was Can. 148&2 in the draft of 1977, in the work of the commission who drafted the Code. Afterwards, the same canon 287&2, became canon 262&2 in the 1980 draft. It only became canon 287&2 in the 1983 Code, after it has undergone all the changes and approvals. In both 1977 and 1980 draft, the aspect of competent authority to dispense of the law, was not missing. The legislator decided to leave it open, giving room for the type of interpretation we have made in the canon using provisions of canon 17 and work of the commission for drafting the law, in order to arrive at the mind of the legislator. To conclude the discussion here, the competent ecclesiastical authority that can dispense of this law is the Ordinary of the Clergy and Ordinary of the place where the activity will take place. One needs to read can 134&1 and 368 to understand well the place of Ordinary, Local Ordinary and Diocesan Bishop. Suffice it to say that an ordinary power is such power that is directly connected to one's office.
[95] *Ibid*.

ii. Conditions attached for evaluation by the Ecclesiastical Authority

The law provides only two conditions for granting this dispensation by the two Ordinaries.

English	*Italian*
''...unless in the judgement of the competent ecclesiastical authority, this is required for the ***defense of the rights of the Church*** *or to* ***promote the common good''***.[96]	*'...A meno che, a guidiozio dell' autorità ecclesiastica competente, non lo richiedono* ***la difesa dei diritti della Chiesa*** *o* ***la promozione del bene commune'***.

This prohibition of clerics taking active part in politics and in directing trade union is a general rule. The legislator provides an exception to the same rule. The exception should boarder on two requirements:

i. Defense of rights of the Church
ii. Promotion of common good

The legislator carefully removed things that should not be considered in determining when active participation in politics is needed. Note that things like popularity, fame, wealth, connection with political powers in the State, emergence as consensus candidate of a party, popular acclamation etc. were not listed by the legislator. It might be important to state, that even when these things mentioned above are there, the competent ecclesiastical authority must look out for two conditions provided in the law under review.

We shall take them individually in order to digest them well.

i. Defense of the rights of the Church.

This brings us to the motivation of this paper. The paper speaks to the motivation of the legislator in prohibiting Clerics from playing active part in politics. The laws of the Church did not jump down from heaven. They are fruit of the sentiments of the Church clearly expressed in the Second Vatican Council. *Le fonti* are found in some of the Conciliar documents available to us.

When is the right of the Church infringed? Does a Cleric need to be the person to defend or reclaim the right of the Church? What rights do we have as a Church?

a. Right to be missionary

[96] Can.287 The exact law presents first of all the motivation for the can 287 &2, in the first paragraph. It is owing to the responsibility placed on the shoulders of Clerics for all humanity, which calls for the second paragraph. If the role of the Clerics is for all, how will the work be done if they become partisan in their politics? This will definitely affect their roles in a negative manner.

This paper cannot claim to have the luxury of delving extensively into this area. However, a brief interrogation of key factors here would suffice. Can 747 talks about '*ius nativum'* in relation to the missionary action of the Church. In relation to the proclamation of the good news the legislator adds '*officium est et ius nativum'*, (duty and inherent right) to underscore the seriousness of the mandate of the Church. ''…*Cum tota Ecclesia natura sit missionaria et opus evangelizationis habendum sit fundamentale officium pupuli Dei''*[97] It is both an 'inherent right/innate right and fundamental obligation'. It is not just a fundamental obligation; it is at the very nature of the Church. It means that the Church that is not missionary has lost its fundamental duty and has substantially changed.

The legislator uses both '*ius nativum*' of can. 747&1 and '*ecclesia natura sit missionaria*' of can.781 to demonstrate the very vital right of the Church to proclaim the good news to the whole world. This is a right and not a privilege. A right can be claimed and defended. This is where the defense of the rights of the Church talked by can 287&2 finds its fitting. can 747&1 added that the inherent right we have is i*ndependente da qualsiasi potesta umana* (*a qualibet humana potestate independens*- Inherent right is independent on any human power)[98]. It means the Church does not wait for the earthly power to approve her task of evangelization. The Church does not actually need approval to engage in her missionary activities. It is not easy to understand, when the Church needs to defend her right to be missionary.

This task of mission is fundamentally on the Holy father, all bishops, priests and on all the baptized persons, that is, on the entire people of God[99]. If a cleric is not allowed to proclaim the word of God, has this right of the Church been infringed on? When the Church is not even allowed to operate, can the Church leverage on this provision of the law to approve clerics to play active role in politics? Since, I am not a competent ecclesiastical authority on this, I will rest my case here.

[97] Can 781 The translation is thus: 'Since the whole Church is by its very nature missionary and the work of evangelization must be held as a fundamental duty of people of God.' The missionary activity of the Church is not just a fundamental obligation, but it touches the very nature of the Church. Before Jesus founded the Church, he was already on mission on earth, sent by the Father and Holy Spirit. That explained why he made constant reference to the Father and prayed when there were temptations. Before the ascended into heaven at the end of his earthly mission, he sent the apostles, and promised to be with them till the end of time. The purpose for which the Church exist on earth is directly and indirectly missionary. The Church cannot therefore exist without at the same time being missionary. This responsibility of the Church has been given to all who are baptized.

[98] 747&1 The right which the Church have to proclaim the world of God is at the very nature of the Church and does not depend on the approvals of the World. It is therefore a mission that is important and urgent, which has been entrusted to the Church and to all the people of God.

[99] Can. 749 &1-3, The task of preaching the word of God at the Universal level falls on the Pope. In every particular Church, the task of preaching the gospel falls on the bishop of the Diocese. Can. 759 The people of Go based on their baptism are also called to preach the good news. The task is therefore for everybody, every member of Christ's faithful. It is a duty that is important and urgent.

b. *Right to intervene in defense of fundamental human right and salvation of soul*

The Church has the right to proclaim moral principles, even in respect of the social order, and to make judgements about any human matter in so far as this is required by fundamental human rights or the salvation of souls[100]. This is another area that the ministry of the Church does not need the approval of anybody. The primary purpose of the law is salvation of souls[101]. The Church cannot remain quiet when fundamental human right is abused. The Church must stand in defense of the dignity of man, created in God's image and likeness.[102] It is important to take note of the details of that canon 747&2. The legislator added '*semper et ubique'* (always and everywhere) to demonstrate the freedom and liberty of the church to defend the fundamental human right and salvation of souls. This special right is not limited by boundary, space or time. The duty of the church can be done always and everywhere, irrespective of human approvals or intervention. Is this what is obtainable in reality? It is the view of the author that in many parts of the world, it is not yet so. In Nigeria especially in some parts of the north, it is still difficult to get lands for church building and evangelization. The killing of Christians in many parts of the world is still an ugly experience that shows its face in our time. Freedom of religion, freedom of speech and association still remains a mirage. What can the Church do in cases where the fundamental human right is abused? Can a cleric be permitted to engage in active politics to help the society reclaim the fundamental human rights?

The second part that could motivate competent authority to give approval for a Cleric to engage in active politics boarders on common good. We shall dwell on this briefly.

ii. ***The promotion of the common good (La promozione del bene commune)***

The Church exists to impact positively on the moral principles of the world and to ensure justice, peace and equity. The missionary action of the Church could respond to this. It is the responsibility of the Church to form the conscience of those in political authority and indeed all men and women, to enable them govern in accordance with the principles of justice and equity.

This goes to say that the Church will support and advocate for a shared well-being, access to the essentials by all, and governance which respects the principle of justice and equity. Any policy that defies the dignity of man, respect for justice and equity cannot be supported by the Church. The laws of the state must be for the general wellbeing of all. Nobody is marginalized based on religion, ethnicity, and tribe. The church should in her message support inclusive leadership and fairness for all men and women.

[100] Can.747&2
[101] Can. 1752
[102] Gen.1:26ff

The common good could also be applied to the internal struggle in the labor unions. Could the competent ecclesiastical authority could permit a cleric to govern such labor group in order to guarantee common good? This could work sometimes, but we know it is not always the case. A cleric might enter there in good faith and gets overwhelmed by the enormity of work or get enticed by the finance in government or trade union, that he abandons the mission.

When the political office holders are not able to guarantee these things listed and more, could the church permit a cleric to enter into active politics in order to re-direct the society to the part of peace, justice and progress? The Church does not easily grant permission for clerics to engage in active politics and civil power.

6. Theological Foundation of the Clerical Political Neutrality

From the *fonte* of the laws under review, we would discover the theological foundations for the Clerical Political Neutrality.

S/N	***Canons***	***Theological Foundation and fonte of the law***
1.	Can.285§3(on exercise of civil power)	*Gaudium et Spes* 76: The **Church** is not tied to any particular form of human culture or political, economic and social system…
2.	Can. 285§3	*Gaudium et Spes,* no.43: Let the **Laity** take their distinctive role *Apostolicam Actuositatem,* nos.7, 2: The ***Laity*** must take up the renewal of the temporal order as their own special obligation…
3.	Can.287§2(On active participation in Politics)	*Presbyterorum ordinis*, no.6: In building Christian community, **Priests** (**Clerics**) are never to put themselves at the service of some human faction or ideology…

Every law was founded on theological and moral principles. We shall briefly present an overview of those foundations on which these canonical principles were made. From all presented already above, it is clear that Clerical political neutrality is viewed from the three perspectives:

1. ***Church***
2. ***Clergy***
3. ***Laity***

As we have seen, the Church chose political neutrality at certain stage in her existence on earth. The choice once made changed the dynamics and outlook of the Church. So, as the Church continues to understand her mission on earth, it became clear that neutrality was

the right way to go. The Church is supernatural and as such is freed from temporal order though it exists in the world.

The clerics who represent Jesus and Church closely should resemble Jesus in their lives and profess the eschatological nature of the Church. Here Clerics are umpires of the game and not active participants in the temporal political space. Will the Church leave this space unattended, being also affected by the political actions of the corrupt politicians? Certainly no.

This is where the laity whose consciences have been sufficiently formed should with the light of the gospel play their proper role and apostolate. *Evangelii Nuntiandi* corroborating the above specifies that they have a very specialized form of evangelization[103]that is, evangelizing the temporal order.

The Church calls for collaboration between the temporal and supernatural orders, thus collaboration between clergy and laity. Council Fathers in *Apostolicam Actuositatem* calls the Laity collaborators and co-operators in the apostolate of the clergy[104]. In this necessary collaboration, Pope Francis warns against the 'excessive clericalism' which pushes the laity into silence and passiveneness[105]. Now the Church calls not just for collaboration but also for co-responsibility with the laity.

To understand the theological foundation for clerical political neutrality, flowing from the *fonte* of the canons under review, this paper presents three simple perspectives:

1. ***Nature and Mission of the Church***
2. ***Identity and Mission of the Cleric***
3. ***Identity and Mission of the Laity***

In the above perspectives, the theological foundation of clerical political neutrality is sufficiently revealed and understood.

6.1 Nature and Mission of the Church

The word Church[106] comes from a Latin word *ecclesia* meaning an assembly. The Greek word *Kyriake*, from which the English word Church and German word *kirche* were derived means 'what belongs to God'. It therefore means the people that God gathers in the world.

[103] *Evangelii Nuntiandi* no.70. 'Their own field of evangelization activity is the vast and complicated world of politics, society and economics. They exercise a very specialized form of evangelization…'.
[104] *Apostolicam Actuositatem*, no.20 ''I laici, collaborando con la gerarchia secondo il modo loro proprio, portano la loro esperienza e assumono la loro responsabilità nel dirigere tali organizzazioni, nel ponderare le circostanze in cui si deve esercitare l'azione pastorale della Chiesa e nella elaborazione ed esecuzione del loro programma di azione''. Lay person must collaborate in 'modo proprio' that is, in 'his or her own way'. This is important to avoid Clericalization of the laity and over Clericalization on the part of the Clergy with subdue the laity into silence.
[105] *Evangelii Gaudium* no. 102.
[106] CCC no.751.

They are the people of God, where Christ himself is the head, and the rest his body[107]. St. Paul re-echoes this assertion; saying that Christ is the head of the body the Church[108]. These are people born not from a perishable but an imperishable seed, from water and holy spirit, and established as a chosen race, a royal priesthood, a holy nation and a people set apart for God[109]. Thus 'the Church is a people made one with the unity of the Father, Son and Holy Spirit'[110].

The Church is a spiritual reality but it exists in the world also as an institution. In the world the Church as an institution exists in the world, being affected by the temporal order. This is the reason neutrality cannot be understood as passivity. The Church as an institution as presented in this paper also chose perpetual political neutrality in international politics. So, both as a spiritual entity and as an institution, the Church clearly chose political neutrality, which is clearly consistent with her nature and mission.

6.1.1 Nature of the Church (Eschatology)

The people of God, though are in the world, but they are not of the world. Chapter seven of *Lumen Gentium* talks clearly about eschatological destiny of the pilgrim Church and its union with the Church of heaven. The document affirmed that;

> *''Church will attain its full perfection only in the glory of heaven, when all things will be restored. At that time human race as well as the entire world, which is ultimately related to man and attains its end through him, will be perfectly re-established in Christ''*[111].

The nature of the Church speaks to jurisdictional separation. It re-echoes the doctrine of two kingdoms. It is represented in the famous analogy of giving Caesar and God their dues expressed in Mt 22:21. The spiritual realm belongs to the Church, while the earthly realm belongs to the State. For this reason, Jesus says, my kingdom is not of this world[112].Maintaining this separation protects the integrity of the Church and sovereignty of the State.

The Church through the sacred ministers points to this reality, which the pilgrim Church reflects in the 'nature of a sacrament'[113]. The elect will form with our savior, a community of the redeemed in the holy city of God. At his time, God will open himself in an

[107] Eph 1:22, *Lumen Gentium,* no.9.
[108] Col.1:18
[109] *Lumen Gentium,* no.9
[110] *Ibid.,* no.4
[111] *Lumen Gentium,* no.48.
[112] Jn.18:36
[113] *Ibid*., no.1, CCC 1945.

inexhaustible manner in a beatific vision to the elect. There will be the ever flowing well spring of happiness, peace, and mutual communion[114].

The law under review seeks to clearly separate the temporal order from the eschatological order. The Church and her sacred ministers must clearly reflect the eschatological order. The eschatological dimension of Church is reflected in the teachings and sacraments offered by the Church. Clerics should understand this and reflect it in their life and ministry. In fact, *Presbyterorum ordinis* corroborated the above assertion, referring specifically to priests saying; 'Priests cannot be ministers of Christ unless they are witnesses and dispensers of a life other than earthly life'[115]. This is the eschatological life which is essentially the hope of all believers. It is the duty of the Church to guide the people of God to this heavenly homeland in heaven. The Sacred Ministers, in union with the Church has the mission to induce all men and women to raise their mind above the changing conditions of this earthly existence, with a view to reaching eternal life of heaven[116]. The Clerics must comport themselves in such a manner as to demonstrate and point the eschatological life.

This is the reason for Clerical neutrality. The Clerics cannot dissipate energy for temporal gains losing focus on the things that really matter. Owing to this, the Church tries to prevent Clerics from the worries of such temporal order, to enable them focus on the very life and nature of the Church.

6.1.2 Mission of the Church

6.1.2.1 Missio Dei (mission of God)

Before the Church existed, Jesus was already on mission, sent by the father. The Father united with the Son, sent the Holy Spirit. Thus, it was God's mission that creates and defines the Church. Being missionary is the 'core identity and essential mission'[117] of the Church. Mission touches the very essence and purpose of the Church. This is the connection between *Missio Dei* and *Missio ecclesiae*. Both finds its origin from *Missio trinitatis.*

The mystery of the Church is manifest in its very foundation, which was set on preaching the good news, to occasion the coming of God's kingdom[118]. The apostolic mandate of

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[114] CCC 1405.

[115] *Presbyterorum ordinis* no.3. Cf. PAUL VI, Encyclical letter, on Holy Eucharist, *Mysterium Fidei*, Sept.3 1965: AAS 57 (1965) p.771.

[116] JOHN XXIII, On Christianity and Social Progress, *Mater et Magistra*, 15 May 1961, Dicastery of Communication, Vatican City, no.2.

[117] *Ad Gentes*, Decree on the Missionary Activity of the Church, no.2. 'The pilgrim Church is missionary by her very nature, since it is from the mission of the Son and mission of the Holy Spirit that she draws her origin, in accordance with the decree of God the Father'. *Evangelii Nuntiandi* no. 14 'We wish to confirm that the task of evangelizing all people constitutes the 'essential mission' of the Church. The Church exists to evangelize…'.

[118] *Ibid.,* no.5

Jesus becomes very pertinent here; go therefore and make disciples of all nations[119].The legislator affirms that the Church is by its nature missionary[120]. Saint Pope John Paul II calls it the first task of the Church[121]. Pope Francis says that this foremost task of the Church has today become its greatest challenge[122].The mission must be open to all without counting on political affiliation or party interest.

The missionary mandate was transferred to the Church. As the Father sent me, so I send you, says Jesus[123].The missionary action of the Church is an essential duty and a fundamental task of the people of God. This invitation which is championed by the sacred ministers must be open to all.

The first point to make here is that the missionary action of the Church is for all. Everybody is welcomed. They must be from all nations, tongue and tribes, without segregation. The task is to form a kingdom of God, here on earth. In this kingdom which the Church represents there is no Hebrew nor gentile, slave nor freeborn, male nor female[124]. Proclamation of the gospel message is to every creature, targeted at bringing the light of Christ to all nations, bringing men and women to the kingdom of God. The neutrality of the Church speaks to the missionary action of the Church which is open to all, without divisions or preferences. It is at the heart and mission of the Church to be neutral. Clerical neutrality flows from this perspective.

6.1.2.2 The Church is a Symbol of Unity.

Pope Leo XIV makes it clear that the Church is a symbol of unity for the entire human family[125]. It is the reason the Church is neutral in every sense of the word. Jesus is the head of the body, the Church. In him all things hold together[126]. The Church, which is the mystical body of Christ should be symbol of unity in the world. Clerics who are representatives of Christ in a special way should not divide the body of Christ, but like Christ should unite the people of God.

St. Pope John XXIII in his encyclical letter *Mater et Magister* described the Church as mother and Teacher of all nations, reflecting the dual, distinct and inseparable roles of the

[119] Mt. 28:19
[120] Can.781
[121] JOHN PAUL II, Encyclical letter, *Redemptoris Missio* (7 December 1990), n.34; AAS 83(1991), p. 280.
[122] FRANCIS, Apostolic Exhortation on Proclamation of the Gospel on the World of Today*, Evangelii Gaudium, 24 November 2013, no.15.*
[123] Jn.20:21
[124] Gal. 3:28
[125] LEO, Encyclical Letter, on Safeguarding Human Person in the Time of Artificial Intelligence, *Magnifica Humanitas,* 15 May 2026*,* no.19
[126] Col.1:17

Church in relation to the world. The Church is a mother because it nurtures humanity with spiritual nourishments found majorly in the sacraments[127].

The pope affirms that the Church is a mother to all humanity. This gives us the sense of unity and not division. Thus, the sacred ministers are therefore chosen from among the faithful to unite them together in one body of Christ[128]. The clerics should represent and guide this position in the discharge of their duties. It is important to remind us that the Clerical neutrality is geared towards preserving the unity which is always at the heart of a mother.

It is noted that partisan politics serves the interests of a part and not a whole. The Clerics serves the interests of all. We need to remember each time that sons and daughters of God are found in all the political parties. Let's us remember that to choose one party over the other, is to introduce a divide in the body of Christ, as our sons and daughters are contesting on both sides. Ours is to guide all sons and daughters to participate in the process while maintaining Clerical neutrality.

Having said that, the Church needs to balance the above position. It is important to remember that the Church is not only a mother but also a teacher. As a teacher, the Church through her Clerics must guide the society with moral truths. With the heart of a mother and mind of a teacher, the Church must advocate for the poor, oppressed and vulnerable. The Church must uphold fundamental human right, dignity, and social justice. We must hold our leaders accountable; once their actions go contrary to fundamental rights and dignity of man. In doing this it is also important not to cross the boundary.

6.1.2.3 The Church's Role of Accompanying Humanity and Intervening in Its History

The Church accompanies the world without overpowering and dominating it. The Church fulfills her mission when this is done creditably. She interprets more deeply the signs of every age, guiding and animating the world with the presence of the Holy Spirit. This is the reason the Church 'cannot be relegated to the inner sanctum of personal life, without influence on societal and national life, without concern for the soundness of civil institutions, without a right to offer an opinion on events affecting the society'[129]. In the present era of the life of the Church and society, the Church should more and more be ready to face, still without deviating from its mission, the numerous demands made by the society

[127] JOHN XXIII, Encyclical letter, Christianity and Social progress, *Mater et Magister*, no.1 15 May 1961: AAS 53(1961), 401-664.
[128] *Presbyterorum ordinis* no.2.
[129] FRANCIS, Apostolic Exhortation, On the Proclamation of the Gospel in today's world, *Evangelii Gaudium* (24 November 2013), 183: AAS 105(2013), p.1097.

which boarders on social, cultural and political dimension of life[130]. The Church in accompanying the world remembers being in the world, but not of the world.

The Church recognizes the distinction between the ecclesial community and political community, and insists that each one must operate with full autonomy[131]. However, the Church oversights the world, listening to the many voices of the time and interpreting them in the light of the word of God[132]. It is only in doing so that the Church shows herself a mother for all. This role of accompanying the world imposes neutrality, both on the Church as an institution and on the Clerics, who represent the Church in many ways.

6.2 Identity and Mission of a Cleric

Presbyterorum ordinis, no.6: ''In building Christian community, ***Priests*** (**Clerics**) are never to put themselves at the service of '***some human faction or ideology'***, but as heralds of the Gospel and shepherds of the Church, they are to spend themselves for the '***spiritual growth'*** of the body of Christ''.

The above frees clerics from every entanglement to human faction or ideology which speaks to the mission of the cleric. It also presents the identity of the cleric which found in Christ and in his body the Church. The identity and mission of the cleric show the theological foundation of clerical Neutrality.

6.2.1 Identity of a Cleric

The identity of a cleric is rooted in Christ. The transformation happens at sacramental ordination. By the imposition of hands and prayers of consecration an ontological bond between the cleric and Christ the high priest is created[133].

Lumen Gentium specified that a Deacon is sacramentally configured through the Holy Orders to act *in persona Christi servi*, that is, in the person of Christ the Servant (*diakonia*)[134]. This provision of *Lumen Gentium* is re-echoed in Catechism of Catholic Church (CCC) 1548[135]. Later Pope Benedict XVI in his apostolic letter of 2009 *Omnium in mentem* changed Can. 1008 using it to specifically limit *persona Christi capitis* to episcopacy and presbyterate. He brought about a third paragraph of Can.1009. This third paragraph was a domestication of *lumen gentium* no. 29 which states that deacons are

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[130] CONGREGATION FOR THE CLERGY, *Directory on the Ministry and Life of the Priests*, Libreria Editrice Vaticana, 31 January 1993, no.34. Cf. JOHN PAUL II, Post Synodal Apostolic Exhortation, *Pastores Dabo Vobis*, 15 March 1992, no.5.

[131] *Magnifica Humanitas,* no.21

[132] *Gaudium et Spes,* no.44

[133] *Pastores Dabo Vobis,* no.11.

[134] *Lumen Gentium,* no.29.

[135]CCC 1548 'In the ecclesial service of the ordained minister, it is Christ himself who is present to his Church as Head of his body, shepherd of his flock, high priest of the redemptive sacrifice, teacher of truth. This is what the Church means by saying that the priest, by virtue of the sacrament of Holy Orders, acts *in persona Christi Capitis'.*

empowered to serve the People of God in the ministries of the liturgy, the word and charity[136]. They are strengthened by the sacramental grace of diaconate ordination for service in the Church, just like 'Christ who came not to be served but to serve and to give his life as a ransom for many[137]'. The deacons serve in the liturgy and in administration of some sacraments and sacramentals[138].

The priests and bishops act in *persona Christi capitis* 'in the person of Christ the head'[139]. They represent in their ecclesial service, Christ himself, present as head of the body, as shepherd of his flock, high priest of redemptive sacrifice, and teacher of truth[140]. Through the power of ordination, they receive spiritual power and therefore participates in the power and authority with which Christ guides his Church[141]. In the sacramental action of priest and bishop as ordained ministers of God, it is Christ himself who is present as the head of the body the Church. Priests and bishops are made like the high priest and possess authority to act in the power and place of the person of Christ himself[142]. St Thomas Aquinas corroborates the above by saying that the 'priests of the New Testament acts in the person of Christ, unlike priest of the Old Testament who was a figure of Christ'[143].

The identity of a cleric shows the theological foundation of the clerical political neutrality. It shows that a cleric appertains to Christ and his Church, and should do everything possible to work and grow the Church.

6.2.2 Mission of a Cleric:

6.2.2.1 *Eucharistic*

The eucharist reveals in a very deep sense the identity and mission of a cleric. This is done at different levels.

The law stipulates, that the only minister who in the person of Christ can bring into being the sacrament of the eucharist is a validly ordained priest and bishop[144]. Pope John Paul II calls celebration of the Eucharist the principal mission of a priest and bishop[145]. It is in this principal mission that his principal identity is revealed. In celebrating the Mass, the depth of this mystery becomes visible[146]. The eucharist reveals the source and holiness of the sacred ministers. It is through the eucharistic offering and sacrifice that the mystical body

[136] Can.1009 §3
[137] Mt.20:28ff
[138] *Lumen Gentium,* no.29.
[139] CCC 1548, Can.1009 §3
[140] *Lumen Gentium*, nos.10, 28, *Sacro Sanctum Concilium*, no.33; *Presbyterorum Ordinis* nos.2,6, *Pastores Dabo Vobis,* no.15.
[141] *Presbyterorum Ordinis*, no.2.
[142] PIUS XII, Encyclical Letter, On Sacred Liturgy, *Mediator Dei*: ASS, 39(1947), p.548.
[143] St. Thomas Aquinas, *STh*. III, 22, 4c.
[144] Can.900§1
[145] POPE JOHN PAUL II, Letter, on Mystery and Worship of the Eucharist, *Dominicae Cena,* 24 February 1980, no.2
[146] *Pastoral Guide*, p. 174.

of Christ, the Church grows and sustains its members to the end of time[147]. St. Pope John Paul II opined that the priesthood is a gift to the Church for the sake of the Eucharist[148].

In the eucharistic offering, an ultimate service which the son renders to the father, the person of a deacon is sacramentalized. Eucharist, a sacrifice effected by Jesus and a service rendered to the father by Jesus, the eucharistic role of a deacon is fully manifested. This role of service which Christ continues is perpetuated through the ministry of the diaconate.

Eucharist is the source and summit of Christian life. It is the source and apex of the whole work of preaching the gospel of Christ. 'Those who by instruction are introduced by stages to a sharing in the Eucharist, and the faithful, already marked with the seal of Baptism and Confirmation are through the reception of the Holy Eucharist fully joined to the Body of Christ'[149]. Thus, every other sacrament, every ministry, every apostolate and pastoral work of the Church are tied together with the Eucharist and are directed towards it[150]. Eucharist contains the entire spiritual good of the Church[151], Jesus himself, the bread of life and lamb of God.

It is a sacrament of unity for the whole Church. It is also the greatest sign and cause of unity in the Church[152]. It is sign and source of ecclesial unity[153]. In the celebration of Eucharist, it is the whole Church praying, emphasizing the spiritual unity being expressed above. One who receives the body and drinks the blood of the son of man, becomes one with him. As many that receive him, they become one with Jesus and one with one another[154].

Eucharistic foundation of Clerical neutrality speaks to the precious vocation and mission of Clerics which places huge responsibility on them. Participation in civil power and active politics would surely make Clerics unable to deliver on their mandate.

6.2.2.2 Ministerial and Missionary

The missionary action of the Church calls for 'service'[155] to all. The emphasis here is that the service should be open to all. It commands a unifying grace inviting all men and women to a common altar of grace. Jesus assures his disciples that he came not to be served but to

[147] POPE JOHN XXIII, Encyclical Letter, *Sacerdotii Nostri Primordia*, 1 August 1959, no.53
[148] POPE JOHN PAUL II, *Prayer on the Occasion of Holy Thursday 1982* cf. L' Osservatore Romano, ed. English, 5-12 April 1982, p.3.
[149] *Presbyterorum Ordinis,* no.5
[150] '' The Eucharist is a quasi-consummation of the Spiritual life and the goal of all Sacraments. Cf. ST. THOMAS, *Summa Theologica III*, q.73, a.3 c; Cf. *Summa Theol*. III, q.65, a. 3.
[151] Cf. ST. THOMAS, *Summa Theol. III*, q.65, a. 3, ad 1; q.79, a 1, c. and ad 1.
[152] *Pastoral Guide*, p.179
[153] *Pastoral Guide*, p.190
[154] Jn.6:56
[155] CCC no.1551

serve[156]. He was the king of the Universe and through his death, he obtained salvation for all. 'You did not choose me; no, I chose you and I have commissioned you to go and bear fruits that will last'[157]. It was his choice and he did not limit salvation to his people. Thus, the ministry that Jesus entrusted to the Church is for the service of all. It is for this reason that Jesus in his death, drew all men to himself. The scripture assures that in him all things hold together, as he is the head of the body the Church[158]. A cleric is a unifier. He is a father for all and should like St. Paul become all things to all men[159].

Thus, a cleric cannot engage in active politics or labor union politics without fulfilling the conditions given by law, because they are foreign to the clerical state and can constitute a grave danger of division in the ecclesial communion[160]. After feeding the five thousand with five loaves and two fish, the crowd wanted to take Jesus by force and to make him a king, he withdrew himself from them[161]. A cleric must remain attentive to his calling. He must remain neutral, in order to be the central point of spiritual fraternity[162]. Participation in the temporal task that is purely social or political, is foreign to clerical ministry and cannot be seen as a triumph but rather a grave loss to the Church's evangelical fruitfulness[163]. The Cleric cannot use his position to divide the people of God, rather he should use his mandate to unite them, just like Jesus did.

In the missionary impetus of the Church everyone is invited. Clerics have special obligation to evangelize the world. In exercising missionary impetus of the Church, Clerics should be careful not to absorb the worldly mentality. The danger of conformism should be avoided[164]. The danger of engaging in politics or union leadership should also be avoided. This could derail the Cleric from his mission and will negatively affect his identity.

Priests and bishops by their ordination are sent forth by the Father through the mediation of Christ, to whom they are configured in a special way[165]. This connects deeply to the priestly identity[166]. Deacons accomplish a mission of announcing the good news, connecting people to God, building up a community of God's people and collaborating

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[156] Mt. 20:28
[157] Jn.15:16
[158] Col.1:17-18
[159] 1 Cor.9:22
[160] CONGREGATION FOR THE EVANGELIZATION OF THE PEOPLES, *Pastoral Guide for the Diocesan Priests that Depend on the Congregation for the Evangelization of Peoples* (1 October 1989), no.9. SACRED CONGREGATION FOR THE CLERGY, *Decree Quidam Episcopi* (8 March 1982), AAS 74 (1982), pp. 642-645.
[161] Jn.6:15
[162] JOHN PAUL II, *Catechism of the General Audience* (28 July 1993), no.3. Cf. *Gaudium et Spes*, no.43, SYNOD OF BISHOPS, Document on Ministerial Priesthood *Ultimis Temporibus* (30 November 1971), II, I, 2b: AAS (1971), pp. 912-913.
[163] CONGREGATION FOR THE CLERGY, *Directory on the Ministry and Life of the Priests*, Libreria Editrice Vaticana, 31 January 1993, no.33.
[164] POPE JOHN PAUL II, *Homily at Ordination of priests in Rio de Janeiro*, 14 July 1980, p.18.
[165] *Pastores Dabo Vobis*, no.12
[166] *Ibid.,* p.528

with priests/bishops in animating the community of those who have become disciples of Jesus[167]. The deacons bound by charity takes up the mission of Christ in their service to the body of Christ. They administer sacraments, sacramentals, and participates in liturgy of the word. In this way, they participate in the mission of the Church[168]. The legislator was intentional about preserving the Clerics from distraction of temporal order in order to protect their sacred vocation in the Church.

6.3 Identity and Mission of Laity

6.3.1 Identity of Laity

The identity of the Laity stems from baptism with which they have been incorporated in Christ and have been constituted as the people of God. They share by the fact of their baptism, and in their own way in the priestly, prophetic and kingly function of Christ[169]. They are all the people of God, and from among them some are called to sacred ministry.[170] In the Church, they are called to understand their identity and thus embrace the mission, which has been entrusted to them.

6.3.2 The Mission of the Laity

The laity are called to the same mission which the Lord has given to his Church on earth. They are not uninterested parties but 'co-responsible' in the missionary impetus of the Church[171]. However, since the laity live in the midst of the world and share in its very life and concerns, they are called to exercise their apostolate in the world, that is, in the temporal order. They are called to 'perfect the temporal order with the spirit of the gospel'.[172]While the Clerics are called to sacred ministry, the laity instead are called to engage in the secular order. *Lumen Gentium* no.31 clearly states,

> *'By their vocation and mission, 'they seek the kingdom of God not just by engaging in the temporal affairs but in their struggle to order them in accordance with the plan of God'*[173].

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[167] POPE JOHN PAUL II, ''*Address to bishops of Zaire on the occasion of their ad limina visit*'', 30 April 1988 cf. L' Osservatore Romano'' ed. English, 6 June 1988, p.8.
[168] *Lumen Gentium*, no.29
[169] Can.204§1
[170] *Lumen Gentium*, no31.
[171] FRANCIS, *Evangelii Gaudium*, (24 November2013), no.120. 'In virtue of their baptism, all the members of the People of God have become missionary disciples'. Cf. also BENEDICT XVI Address to the Pastoral Convention of the Diocese of Rome, 'Co-responsible for the Church's Being and Action', Lateran Basilica Rome, 2009. 'Demands a change in mindset, particularly concerning lay people. They must no longer be viewed as collaborators of the Clergy but truly recognized as co-responsible for the Church's being and action, thereby fostering the consolidation of a mature and committed laity'. Cf. also, *Instruction Regarding the Collaboration of the Non-Ordained Faithful in the Sacred Ministry of Priests*, Libreria Editrice Vaticana, Vatican City 1997.
[172] *Apostolicam Actuositatem,* no.2.
[173] *Lumen Gentium,* no.31.

This is the identity which speaks to the vocation and mission of the Laity in the Church. This is the theological foundation of Can. 285§3 and Can.287§2, which specifically forbid clerics from active participation in Politics and civil power, in order to give the Laity their rightful position in the Church.

Gaudium et Spes no. 43 already cited concludes and clearly states the rightful position, that 'secular duties and activities belong properly not exclusively to the laity'[174]. The Church always expects collaboration between the clerics and laity. The Church in *Apostolicam Actuositatem* no. 7 corroborates the above saying 'laity must take up the renewal of the temporal order as their own special obligation'[175].

Theological Foundation for Clerical Neutrality

The identity and mission of the laity presented shows the theological basis for Clerical neutrality. Since the laity live in the temporal order, they have the apostolate and mandate to get adequate preparation to confront and transform the temporal order from within. The legislator is intentional about the separation between the sacred ministry given to sacred ministers and the ministry of the temporal order given to the laity. Active participation in politics, involvement in the civil authority intended by Cann.287§2 and 285§3 belong to the temporal order and so belong to the apostolate of the laity.

To be able to effectively govern and transform the temporal order they need adequate preparation. It is important to note that Clerics have the duty to form the consciences of the Laity whose duty it is to inscribe the joy of the gospel to the earthly city and from within improve it[176].

7. Dangers of Clerical Political Involvement

7.1 Loss of Vocation:

The Church has witnessed the participation of few clerics in active politics and many of them lost their vocation in the process. Others had one form of broken relationship with the Church or the other. Few examples will help buttress the point being made here:

- ***Robert F. Drinan (Jesuit Priest)***

He became elected into U.S Congress (1970-1981). He was the first Catholic Priest to serve as a voting member of Congress. Drinan represented Massachusetts in the US House for 10years. Unfortunately, he ended up supporting abortion rights. The Church had issues with him and almost forced him not to run again.

[174] *Gaudium et Spes*, no.43
[175] *Apostolicam Actuositatem,* no.7.
[176] *Gaudium et Spes*, no.43.

- ***Miguel D'Escoto, Ernesto Cardenal and Fernando Cardenal (Nicaraguan Political Priests)***

They functioned as high-ranking government officials after the 1979 revolution in the country. It was said that they aligned with the political regime. These priests had issues with Vatican and were advised to resign their role.

It might be important to note that most of these problems happened during the papacy of Pope John Paul II. This was the reason he emphasized on priestly neutrality in politics. Pope John Paul II insists that Priests should be the father of all, which partisan Politics would frustrate. The Pope personally rebuked Ernesto Cardenal.

- ***Father Jean-Bertrand Aristide (Haiti)***

He was a Catholic Priest who later became President of Haiti. He supported the political movement of the poor. His administration was laced with instability, coups, exile etc. He later left active priesthood.

- ***Father Moses Orshio Adasu[177] (Benue State, Nigeria)***

He was a Dean of Makurdi Deanery and Vicar General of Makurdi Diocese. He later became a politician. He was the first Catholic Priest to become the governor of Benue State. He contested and won under Social Democratic party (SDP). He served from January 1992 to November 1993. His administration was cut short by the military coup of Sani Abacha which took place in 1993. He later contested again in 2003 under Alliance for Democracy (AD). However, he lost to George Akume of PDP who was the incumbent governor at the time[178]. The temptation to go into active politics is real. It is important to pay attention to the yearnings of the Church.

- ***Father Hyacinth Alia (Benue State, Nigeria)***

He contested under the platform of APC and won the governorship election. He became the governor of Benue State in 2023 for a four-year term that will end in 2027. He was immediately suspended by the Church. His action is not consistent with the laws under review today. This is partly the reason for this topic, now the country is going into another general election.

7.2 *Danger of 'Laicization of the Clergy' and Clericalization of the Laity*

[177] Sahara Reporters*, Fr. Alia and Tempering Expectations by Sesugh Akume*, New York City United States, 3 April 2023. Cf also Rev. *Fr. Moses Adasu, Government of Benue State*, Archived from the Original on 11 July 2011.
[178] Okelo Madukaife, *Inside Story of PDP Victory in Benue State*, Vanguard, 6 May 2003.

The expression 'laicization of the clergy'[179] is a technical expression which calls attention to the danger of allowing the clerics focus on secular and temporal affairs in such a way that they begin to lose sight of their major identity and mission. Laicization here does not directly refer to loss of Clerical state espoused by Can 290. Clericalization of the laity warns about allowing the laity to develop clerical mindset and roles, in such a way that they lose their unique mission in the secular world. This is what is possible, when clerical political neutrality is not upheld.

The Second Vatican Council refers to all baptized as the people of God[180]. From among the people of God some are chosen who are called the Sacred Ministers[181]. However, the legislator reminds us in can 208 of equality of dignity among the Christ's faithful, so that each contributes according to one's own condition and office, in the building up of the body of Christ[182].

Each group must endeavor not to lose its important role in the Church. It is not good to 'laicize' the Clergy nor 'Clericalize' the laity. The Second Vatican Council stressed that the mission of the laity is in the secular sphere[183]. The mission of the laity includes: politics, Commerce, family, intellectual and cultural life of the society. The laity should engage the world, while the Clerics should focus on the pastoral, sacramental and liturgical life of the Church. Both should collaborate in their individual mission. There is only a difference, and not a separation between the two[184]. The danger expressed above should be avoided, as it would be a great disservice to the Church in general.

7.3 Division among the Flock of Christ

The most recent visit of Peter Obi to Eyewater reveals what is possible when the flock of Christ is divided. The elders and critics alleged that the obstruction was politically motivated. The Benue state government denied the allegation. However, it could be said that the right things were not done. Both principal players should be on the same side because of their faith. Sometime in the past, it was said that there was genocide of Christians going on in Nigeria. The position of the Clerics was divided on this. While some presented concrete facts, few others defended and supported the position of government.

[179]Can.290. It is important to make the subtle distinction between the technical term Laicization of the Clergy and loss of Clerical state. It is noted that the word laicization is no more used because even after the loss of Clerical state, the Clergy remains because of the indelible character of ordination. However, the term is used to describe the tendency of losing sight on the spiritual and sacred ministry of the Clerics which could make the person become more like a laity, not in dignity of office but in the service and ministry of the laity.
[180] Can 204
[181] Can.207§1
[182] Can 208
[183] *Lumen Gentium,* no.31, *Evangelii Nuntiandi,* no.70; *Christifideles Laici,* no.17.
[184] THOMAS PAZHAYAMPALLIL, SDB, *Pastoral Guide vol.2,* Kristu Jyoti publication, India, 2004 pp.519-519.

The Church of God was polarized and flock was also divided. This is to say the least unfortunate.

Jesus chose his apostles and brought them together to form a team. With the mandate to make disciples of all nations, he increased the number of believers. They were always united in heart and mind[185]. People sold what they had and laid the monies on the feet of the apostles. Jesus before his departure from the world prayed for unity among the believers. May they be one[186]. It is only in this way, united in love, that people would identify the apostles of Jesus.

It is at this point pertinent to use this opportunity to appreciate the leadership of the Catholic Bishops' Conference of Nigeria (CBCN) for the courage to speak truth to power, in their last visit to President Tinubu on 28 July 2026. It was an opportunity for advocacy on issues that bother Nigerians: worsening insecurity, severe economic hardship, political inclusion, Muslim-Muslim ticket, demand of free and fair election. Most Nigerians were so proud of the CBCN for that singular action. This is what is possible when the Church is united, having before her eyes only the good of the society and not personal interests.

The Church has been an instrument of unity. Participation in political activities and union leadership or in active politics will divide the people of God entrusted to their pastoral care. It is always important for a priest to remember that the people of God are in all the parties. Once a cleric supports one political party openly, the other political parties will feel disappointed and then will see him as an enemy. In the face of pressure and tension, the cleric must remember his identity and mission. He should rather prepare the laity to participate in partisan politics after having formed their consciences.

7.4 Loss of Moral Authority

The story of a Dog's will adapted as comedy by Ariano Suassuna of 1955; reminds us of what financial enticement could do to clerics. A priest was approached to say mass for a dead dog, he refused and cited catholic theology. When the parish secretary told the priest that a huge amount of money was contained in the will of the owner as stipend for the mass, he said: Sweet Mary, Mother of Jesus, why didn't you tell me your dog was a Catholic dog. Involvement in active politics and civil power could be a big temptation that could derail a cleric.

Political office holders usually do not like to hear the truth. Participating in the political activities compromises the cleric and makes it difficult for him to condemn evil happening in the society. When a cleric is a member of a political party or a leader of union group, it might be easy for him to lose entirely his prophetic voice.

[185] Acts 4:32
[186] Jn. 17:21

The fundamental duty of a cleric is evangelization. In preaching the gospel the cleric should be able to apply the gospel to the circumstances of his environment, allowing Jesus to shed the light of the gospel on it. This involves condemning evil and promoting good. How can a cleric boldly raise his prophetic voice when he is involved in the leadership of a party or union that is engaged in immoral and illegal activities.

It is for this reason that the Church wants clerics to focus on the eschatological presence and sacraments, allowing the laity to take care of politics. If our lay people participate without first of all allowing their consciences to be formed, the problem might remain. Firstly, clerics should form the consciences of the lay people before encouraging them to participate in partisan politics and union leadership.

Having seen the stand of the law about clerical political neutrality and dangers of getting involved in politics and other things forbidden by law, what is the way forward? What can be done to help our country get freed from all that bedevils it? Getting dispensation from the laws already stated cannot go without its own challenges. Even, clerics who have ventured to enter into active politics were swallowed up in it.

8. Three Models for Consideration

8.1 Engagement of Married Deacons in Politics

Engaging married deacons could be a good option. Canon 288 states clearly that married deacons are not bound by law regarding the use of clerical dress (can. 284), participation in active politics (can. 287§2) and assumption of civil offices (can. 285§§3 and 4).

It is obvious that permanent deacons are not common in Nigeria owing to the presence of priests in many Dioceses. The Church could be intentional about the special need that could require their presence. However, the law requires that even where permanent deacons exist, the Local Ordinary should ensure that they do not take up a profession, trade or role, which he considers unsuitable for a fruitful apostolate.

It is also important to mention here the provision of can. 1042 n.2 which states that one who exercises an office or administration forbidden by the Church for clerics in can. 285 and 286 is impeded from receiving orders, until such a time, he has relinquished the office and rendered account and has been free. This law does not make exemption for candidates for married deacons[187]. This option has many challenges, but it is still an option that could be explored.

[187] Can.1042 n.2. Cf. also Paul VI, Apostolic Letter, Motu proprio *Sacrum diaconatus ordinem*, General Norms on Restoring the Permanent Diaconate in the Latin Church, 18 June 1967, no.17 ‘’Let care be taken that the deacons do not exercise an art or a profession which in the judgment of the local Ordinary is unfitting or impedes the fruitful exercise of the sacred office’’.

8.2 Special Formation of Team Save Nigeria

Model of clergy Workers adopted in France and Belgium from 1944 to 1959 sets a good precedence. There was the need to evangelize the lower class. Clerics especially priests who went for the mission took jobs in factories and constructions industries. They succeeded in evangelizing some targeted persons. However, the spiritual life of those clerics was endangered. The sentiments of the Church were represented by the submission of Cardinal Pizzardo, which was a response to Cardinal Feltin's petition to allow priests work full time in factories.

He said; ''it is not absolutely necessary to send priests as workers into the centers of labor …working in factories is incompatible with the life and duties of a priest''[188]. On October 23, 1965 the bishops of France announced an experiment with few prepared priests that would work full time in the factories. They called it 'essentially priestly mission'. They sought consent of the Holy See to do so. The Holy See gave three conditions: No involvement in labor union activity, they should not live alone, compulsory presence of lay members of the Workers Catholic Action. This French experiment succeeded to a reasonable extent. What is more important here is not the extent of their success story but their commitment to solve an existing problem.

Team save Nigeria could be a committee of honest and committed lay people formed by the CBCN with representatives from every Diocese, with a very clear mandate of saving the country. They should be able to agree on one candidate that will be voted for in presidential election. In that way we encourage the laity to engage in temporal affairs, while priests should focus on the spiritual affairs.[189] The laity should take their roles seriously and always being accompanied and guided by clerics. It is the ABGA model. It is the lay people performing but they are constantly being mentored by the Church. We have a duty to form the consciences of such people before sending them forth to participate in politics.

8.3 Jesus's approach

The clerics must take a common decision on which way to go. The option of sitting on the fence has been overtaken. Neutrality is not passivity. Our dear Country Nigeria needs an urgent rescue mission. It is obvious that the clerics have spoken loudly and clearly about the way forward, sometimes condemning evils in every administration. The communiques issued by the Catholic Bishops' Conference of Nigeria[190] are always interrogating the Nigerian question, suggesting ways of good governance and holding political leaders

[188] John Beal et al, *New Commentary on the Code of Canon Law* (ed), Bangalore, Theological Publication in India, 2003 pp.374-375
[189] *The Ministerial Priesthood*, II, n.2 (December 9, 1971), *TPS* 16 (1972), p.369. ''The Worker Priest: Experiment in France'' America 150 (April 7, 1984), p.257.
[190] Catholic Secretariat of Nigeria, *Our Concern for Nigeria, Catholic Bishops Speaks*, Abuja, 2015 pp.50-51

accountable. From 1963 to 2015, the bishops have written about 77 communiques and only about 8 were focused purely on religious matters, the others about 69 were on governance and politics. In those that focused on religious matters, they still ended by devoting a paragraph to the Nigerian question. A good example is the plenary meeting of 9-13 September 1986; the bishops ended the meeting with a communique titled 'The return of the Mortal Remains of the Servant of God, Rev. Fr. Michael Iwene Tansi, A Cistercian Monk'[191]. The last paragraph of the communique still centered on civilian rule. They welcomed the commitment of the military to return the Country to civilian rule.

It is important to say that the problem here is not advocacy. This has been sufficiently done. The last visit of the CBCN to President Tinubu is a good example of what can be achieved by advocacy, speaking truth to power. However, it is not enough. We need to go an extra mile using the instruments allowed by law.

Can the Church in Nigeria urge and prepare the laity to take over the redemption of Nigeria? Can we select few persons fully formed by the Church and given the task of redeeming Nigeria? As the father sent the son to redeem man, the son sent the twelve. He empowered them with the Holy Spirit. It was the twelve that gave the world the Christianity we enjoy today. Jesus took three years to form them. He made sure they understood the mission. That for him was not enough, he still gave them the Holy Spirit to remind them all they were taught.

Could the Church use Jesus's model? These people might be politicians, but they must be people of honor, who must be trained and tasked with getting one person acceptable to all for political leadership in Nigeria. They must interface with Christians of other religious denominations and our Muslim brothers. I am confident, that something good could come out of it. This must be done maintaining the distance established by canon law.

9 Conclusion

The Church is the moral conscience of the society pointing out what is good and bad in the political life of the Community[192]. The Church has the duty to denounce anything that violate justice, human rights and fundamental human freedom. This is an integral part of evangelization[193]. The Bishops of Nigeria speaking through her organ, CBCN after their conference in Makurdi in 1982 asserted that silence in the face of political instability in

[191] Ibid., p.50

[192] THOMAS PAZHAYAMPALLIL, *Pastoral Guide vol.2 Sacraments and Bioethics,* New Delhi, Rekha Printers, 7 January 2002, p.724.

[193] PASTORAL LETTER OF THE BISHOPS OF UGANDA, *With a New Heart and a New Spirit*, 29 June 1986. The bishops of Uganda when it mattered most spoke with one voice, in fulfillment of their prophetic role announced that the Church represents the moral conscience of a nation and she has the divine mandate to spell out what is good and bad, right and wrong in the political life of a Nation. This is the mission, the prophetic role and mandate of Christ.

Nigeria, is a grave disservice to the Nation[194]. The Church has a role to pronounce judgment on anything that is contrary to the dignity of the human person [195].

In Nigeria the situation is sometimes funny. Though Nigeria practices democracy which is government of the people, by the people and for the people, it has not favored the majority of her citizens. 'People get the leadership they deserve. When people sell their votes, they abuse the sacred right of citizenship and conspire in the destruction of the Nation'[196].

Finally, the sentiments of the bishops of Nigeria were captured in one of the communiques. At the plenary meeting held in Makurdi on 6-11 September 1982 the bishops spoke with one voice saying:

> *'Whilst the Church has a right and a duty to pronounce on political issues and their moral implication, the **bishops do not approve** of priests standing for election, accepting partisan political appointments and/or campaigning in partisan politics[197].*

While the legislator made strict provisions on clerical political neutrality, but the competent ecclesiastical authority could dispense based on the conditions provided. It should be noted that the bishops of Nigeria have taken a position on the topic, as shown above. To the best of my knowledge, the CBCN has taken a stand on Clerical political neutrality in Nigeria. In the interactive session between the 'Nigerian Catholic Diocesan Priests Association'[198] (NCDPA)with the bishops of Nigeria held during the Oshogbo plenary meeting (10-11 September 2026), the priests committed themselves to non-partisanship and to the duty of encouraging the lay faithful to participate actively in politics.

Pope Benedict XV was elected few weeks after the World War 1 began, faced with an unprecedented crisis, seeing millions of Catholic fighting on the side of Allied forces (France, Italy and Belgium) and on the side of Central power (Austria, Hungary, Germany), he realized that fighting on one side will permanently destroy the global unity of the Church. He called for clerical Political neutrality with the reason that Catholics are fighting on both sides. Anytime we are tempted to favour or support one political party, let us always remember that Catholics are fighting on both sides. It will be a situation of Catholics

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[194] CATHOLIC SECRETARIAT OF NIGERIA, *Our Concern for Nigeria, Catholic Bishops Speak*, Lagos Gazub Prints, 2015, p.21.
[195] Can.751
[196] CATHOLIC SECRETARIAT OF NIGERIA, *Our Concern for Nigeria, Catholic Bishops Speak,* p.21.
[197] *Ibid.*, p.22.
[198] NIGERIAN CATHOLIC DIOCESAN PRIESTS ASSOCIATION (NCDPA), Resolution of the biennial Interactive Session between Catholic Bishops' Conference of Nigeria (CBCN) and NCDPA, on 10-11 September 2026, Osogbo, Osun State. 'We shall neither endorse not campaign for any political party or candidate. We shall promote and uphold the values o truth, justice, integrity, competence, and good governance'. p.1.

fighting Catholics. As clerics, we are called to be umpires and not active players in the field of politics.

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